Law of Criminal Procedure (BNSS, 2023)

Module-wise Notes and Exam Answers

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LAW OF CRIMINAL PROCEDURE (BNSS, 2023): Module-wise Explanation

> The Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) came into force on **1 July 2024** and replaced the Code of Criminal Procedure, 1973 (CrPC). It has **531 sections**. Old CrPC numbers are given in brackets because most books and judgments still use them.

MODULE 1: INTRODUCTION TO BNSS, 2023

1. Why we need criminal procedure

Criminal law has two parts:

- **Substantive law** (the Bharatiya Nyaya Sanhita, BNS) says *what* is a crime and *what* the punishment is.
- **Procedural law** (the BNSS) says *how* the law is enforced: how a crime is reported, investigated, how the accused is arrested, tried, sentenced, and how appeals are made.

Without procedure, substantive law is only words on paper. Procedural law must also keep a balance:

- **crime control**: the State must catch and punish offenders efficiently;
- **due process**: the accused must be treated fairly, and the innocent must be protected.

The BNSS tries to balance both, and also gives a new place to the **victim**.

2. Adversarial and inquisitorial systems

There are two broad models of criminal justice.

Adversarial (accusatorial) system (England, USA, India):

- The prosecution and the defence are opponents.
- The judge is a **neutral umpire**.
- The accused is **presumed innocent**, and the prosecution must prove guilt **beyond reasonable doubt**.
- Evidence is collected by the parties and tested by **cross-examination**.

Inquisitorial system (France, Germany):

- The judge actively **investigates** and questions witnesses to find the truth.
- Written dossiers matter more than oral contest.

India follows the adversarial model but has **inquisitorial features**:

- the court can summon any witness (s.348, CrPC 311);
- the judge can ask any question (BSA s.168);
- the court examines the accused (s.351, CrPC 313).

In *Zahira Habibullah Sheikh v. State of Gujarat* (2004) (the Best Bakery case), the Supreme Court said the judge is not a mere spectator but must actively help find the truth. The Malimath Committee (2003) also recommended adding more inquisitorial elements.

3. International norms and constitutional basis

International instruments:

- **UDHR (1948)**: Arts. 9–11, which cover no arbitrary arrest, a fair hearing, and the presumption of innocence.
- **ICCPR (1966)**: Arts. 9, 14 and 15, which cover prompt production before a judge, legal aid, no self-incrimination, no double jeopardy, and no ex post facto law.

The Indian Constitution builds these protections in:

- **Art. 14**: equality; procedure must not be arbitrary.
- **Art. 20**:
  - 20(1): no retrospective criminal law;
  - 20(2): no double jeopardy;
  - 20(3): no self-incrimination (*Nandini Satpathy v. P.L. Dani*, 1978; *Selvi v. State of Karnataka*, 2010, which held narco-analysis cannot be done without consent).
- **Art. 21**: after *Maneka Gandhi v. UOI* (1978), any procedure depriving liberty must be "fair, just and reasonable". From this the courts derived:
  - the right to a speedy trial (*Hussainara Khatoon*, 1979);
  - free legal aid (*M.H. Hoskot*, 1978);
  - protection from custodial torture (*D.K. Basu*, 1997).
- **Art. 22**: the right to know the grounds of arrest, to consult a lawyer, and to be produced before a magistrate within 24 hours.
- **Art. 39A**: free legal aid.

4. Salient features of the BNSS

The BNSS keeps most of the CrPC structure but introduces:

- **Zero FIR and e-FIR** (s.173).
- **Preliminary enquiry** for offences punishable with 3–7 years.
- **Mandatory forensic** examination for offences punishable with 7 years or more (s.176).
- **Videography** of search and seizure (s.105).
- **Trial in absentia** of proclaimed offenders (s.356).
- **Community service** as a punishment for petty offences (s.23).

- **Fixed timelines**:
  - copies of documents in 14 days;
  - charge within 60 days of first hearing;
  - judgment within 30 days of arguments, extendable to 45;
  - the victim told of the progress of investigation within 90 days.
- **Relief for undertrials**: a first-time offender is released after serving one-third of the maximum sentence (s.479).
- **Deemed sanction** to prosecute a public servant if not decided in 120 days (s.218).
- **Directorate of Prosecution** (s.20).
- **Witness Protection Scheme** (s.398).
- **Handcuffing** for certain serious offenders (s.43(3)).
- **Attachment of proceeds of crime** (s.107).
- **Electronic** summons, trials and evidence.
- **Metropolitan Magistrates and Assistant Sessions Judges abolished**.

5. Organisation of functionaries

- **Police**: prevent crime, register FIRs, investigate, arrest, search, file the chargesheet.
- **Prosecution** (ss.18–20):
  - Public Prosecutors (PP) need 7 years of practice; Special PPs need 10 years.
  - Assistant Public Prosecutors (APP) appear in magistrates' courts.
  - The new **Directorate of Prosecution** supervises prosecution work.
  - The PP is a "minister of justice", not a persecutor. They must place all evidence fairly (*Shiv Kumar v. Hukam Chand*, 1999).
  - A victim may engage their own lawyer to assist the PP.
- **Defence**: every accused has the right to a lawyer of choice (s.340) and to legal aid at State expense (s.341).
- **Prison authorities**: keep custody and work towards reform. Prisoners do not lose their fundamental rights (*Sunil Batra v. Delhi Admin.*, 1978).

6. Important definitions (s.2)

- **Bail**: release from custody on conditions, on a bond. This is defined for the first time.
- **Bailable offence**: shown as bailable in the First Schedule. All others are non-bailable.
- **Cognizable offence**: police can arrest without warrant. **Non-cognizable offence**: they cannot.
- **Complaint**: an allegation to a **Magistrate**, oral or written, asking them to take action. It does not include a police report.
- **Investigation**: evidence collection by police.
- **Inquiry**: anything other than a trial done by a Magistrate or court.
- **Trial**: ends in conviction or acquittal.
- **Warrant case**: an offence punishable with death, life imprisonment, or imprisonment **above 2 years**. **Summons case**: all other offences.
- **Victim**: includes the guardian or legal heir.

7. Hierarchy and powers of courts (ss. 6–29)

Section 6 lists the classes of criminal courts:

1. Court of Session
2. Judicial Magistrate First Class (JMFC)
3. Judicial Magistrate Second Class
4. Executive Magistrates

The High Court and Supreme Court sit above them. The Chief Judicial Magistrate (CJM) heads the magistracy in a district and is subordinate to the Sessions Judge (s.13).

Sentencing powers:

Court	Maximum sentence
High Court	Any sentence authorised by law
Sessions Judge	Any sentence; **death needs High Court confirmation**
CJM	Up to 7 years
JMFC	3 years, fine up to ₹50,000, or community service
JM-II	1 year, fine up to ₹10,000, or community service

When there are several sentences in one trial, the aggregate cannot exceed 20 years (s.25).

8. Aid to police and magistrates (ss. 30–34)

- Superior police officers have the same powers as the officer in charge of a police station (s.30).
- Every member of the public is **bound to assist** a magistrate or police officer in arresting an offender, preventing a breach of peace, or protecting public property (s.31).
- The public must report certain serious offences (s.33).
- Village officers must report suspicious deaths and the presence of proclaimed offenders (s.34).

MODULE 2: JURISDICTION OF CRIMINAL COURTS IN INQUIRIES AND TRIALS

1. General principle: local jurisdiction (s.197)

The basic rule is that **every offence is inquired into and tried by the court within whose local jurisdiction it was committed** (s.197, CrPC 177). The reasons are:

- witnesses and evidence are available locally;
- it is convenient for the parties;
- the local community sees justice done.

2. Exceptions and special rules (ss. 198–209)

Crimes do not always happen neatly in one place, so the BNSS gives flexibility:

- **Uncertain or multiple places (s.198)**: where it is uncertain where the offence was committed, or it was committed partly in one area and partly in another, or it is a **continuing offence**, any of those courts can try it.
- **Act or consequence (s.199)**: an offence is triable where the act was done **or** where the consequence followed. For example, if a person is injured in one place and dies in another, either court can try the case.
- **Related offences (s.200)**: abetment or receiving stolen property can be tried where either act happened.
- **Special places (s.201)**:
    - dacoity or murder with dacoity: where committed or where the accused is found;
    - kidnapping: where the person was taken, kept or concealed;
    - theft: where the stolen property is possessed;
    - criminal breach of trust: where the property was received or should have been accounted for.
- **Letters and electronic communication (s.202)**: triable where sent or received. **Bigamy** is triable where the offender or the first spouse resides.
- **Offences during a journey (s.203)**: triable in any area the person or goods passed through.
- **Doubt (s.206)**: the High Court decides.
- **Offences outside India (s.208)**: committed by an Indian citizen anywhere, or on an Indian ship or aircraft. They are triable where the accused is found in India, but need **prior sanction of the Central Government**.

In *Y. Abraham Ajith v. Inspector of Police* (2004), the Supreme Court said the civil concept of "cause of action" does not apply to criminal jurisdiction. In *Dashrath Rupsingh Rathod* (2014), it fixed jurisdiction in cheque bounce cases.

3. Initiation of proceedings: cognizance (ss. 210–214)

"Taking cognizance" means the magistrate **applies their judicial mind** to the facts in order to proceed further (*S.K. Sinha v. Videocon*, 2008). Cognizance is of the **offence**, not the offender.

Under s.210, a magistrate takes cognizance on:

a. a **complaint**;
b. a **police report**; or
c. **information from any other person** or the magistrate's **own knowledge**.

In case (c), the accused can ask for a transfer to another magistrate (s.211).

A **Court of Session cannot take cognizance directly**. The case must be **committed** to it by a magistrate (s.213).

4. Exceptions to the general power of cognizance (ss. 215–222)

For some offences, the law protects certain persons or interests by requiring a **complaint or sanction**:

- **s.215 (CrPC 195)**: offences against public servants' authority, offences against public justice, and forgery of documents produced in court. These need a **written complaint by the public servant or court** concerned (*Iqbal Singh Marwah v. Meenakshi Marwah*, 2005).
- **s.217**: offences against the State and certain conspiracies need **Government sanction**.
- **s.218 (CrPC 197)**: prosecution of judges and public servants for official acts needs **prior sanction**. Under the BNSS, sanction is **deemed granted if not decided in 120 days**.
- **s.219**: offences relating to marriage need a complaint by the **aggrieved person**.
- **s.220**: cruelty by husband or relatives needs a police report or a complaint by the victim or her relatives.
- **s.222**: **defamation** needs a complaint by the person defamed. Where a high constitutional functionary is defamed, the Public Prosecutor files the complaint in a Sessions Court.

5. Complaint to magistrate (ss. 223–226)

When a complaint is filed:

1. The magistrate **examines the complainant and witnesses on oath** (s.223). Under a new BNSS proviso, **the accused must be heard before cognizance is taken**.
2. If in doubt, the magistrate may **postpone process** and inquire personally or order a police investigation (s.225). This is **mandatory if the accused lives outside the magistrate's jurisdiction** (*Vijay Dhanuka*, 2014).
3. If there is no sufficient ground, the complaint is **dismissed** with brief reasons (s.226).

6. Commencement of proceedings (ss. 227–233)

If there is sufficient ground:

- the magistrate issues **summons** (in a summons case) or a **warrant** (in a warrant case) (s.227);
- may exempt the accused from personal appearance (s.228);
- in petty cases, allows a plea of guilty by post (s.229).

The accused must receive **free copies of the police report and documents within 14 days** (s.230). This is part of a fair trial.

Cases exclusively triable by a Sessions Court are **committed** to it, ideally within 90 days (s.232).

Where a complaint case and a police investigation on the same matter are running at the same time, the complaint case is stayed and both are tried together (s.233).

MODULE 3: INFORMATION TO POLICE, INVESTIGATION AND ARREST

1. FIR (s.173)

The **First Information Report** is the information about a **cognizable offence** first given to the police. It sets the criminal law in motion.

- It may be given **orally or electronically**. An e-FIR must be signed within 3 days.
- It can be lodged at **any police station (Zero FIR)**, which transfers it to the right station.
- The informant gets a **free copy**.
- Offences against women are recorded by a **woman officer**.
- For offences punishable with 3–7 years, a **preliminary enquiry of up to 14 days** is allowed.
- If police refuse to register an FIR, the informant can go to the **Superintendent of Police** and then to the **magistrate (s.175(3))**, with an affidavit.

In ***Lalita Kumari v. Govt. of U.P.*** **(2014)**, the Constitution Bench held that registration of an FIR is **mandatory** when the information discloses a cognizable offence.

Evidentiary value:

- An FIR is **not substantive evidence**. It is used to **corroborate** or **contradict** the informant.
- If the informant dies, it can be a **dying declaration**.
- A confession in an FIR given by the accused is **inadmissible** (*Aghnoo Nagesia*, 1966).
- **Delay** in filing is not fatal if explained.

For **non-cognizable offences**, the police only record the information and send the informant to the magistrate. They cannot investigate without the magistrate's order (s.174).

2. Investigation and interrogation (ss. 175–193)

- The officer in charge may investigate a cognizable case **without the magistrate's order** (s.175).
- Police can **summon witnesses** (s.179). Women, children under 15, persons above 60 and disabled persons are questioned **at their homes**.

- Statements of witnesses (s.180) are **not signed** and **cannot be used as evidence** except to **contradict** the witness (s.181, CrPC 162).
- Police must not use threats or inducements (s.182).
- A rape victim is medically examined within 24 hours (s.184).

3. Arrest

Arrest without warrant (s.35, CrPC 41). Police may arrest without a warrant when:

- a cognizable offence is committed **in their presence**;
- for offences punishable with **up to 7 years**, there is credible information **and arrest is necessary**: to prevent further offences, for proper investigation, to stop tampering with evidence or witnesses, or to secure attendance. **Reasons must be recorded**;
- for offences punishable with more than 7 years, there is credible information;
- the person is a proclaimed offender or similar.

Where arrest is not necessary, a **notice of appearance** is issued (old s.41A). Persons who are **infirm or above 60** cannot be arrested for offences below 3 years without a DSP's permission.

***Arnesh Kumar v. State of Bihar* (2014)** and ***Joginder Kumar v. State of U.P.* (1994)** prohibit routine, automatic arrests.

How arrest is made (s.43):

- by touching or confining the person;
- a woman is arrested only by a woman officer, and **not after sunset or before sunrise** except with a magistrate's permission;
- **handcuffs** only for specified serious or habitual offenders;
- **no more restraint than necessary** (s.46).

A **private person** can arrest someone who commits a non-bailable and cognizable offence in their presence, but must hand them to the police within 6 hours (s.40).

Arrest with warrant (ss. 72–83): a warrant is written, signed and sealed, and remains in force until executed or cancelled. It may be **bailable** (s.73). The arrested person must be produced before the court within **24 hours**.

Proclamation and attachment (ss. 84–93): if the accused **absconds**, the court issues a **proclamation** requiring appearance within at least 30 days. The person may be declared a **proclaimed offender** and their **property attached** (s.85). Property abroad may also be attached (s.86).

Police must report all warrantless arrests to the District Magistrate (s.59). An arrested person is released only on bond, bail or a magistrate's order (s.60). Police may **pursue and re-arrest** an escaped person anywhere in India (s.61).

4. Rights of arrested persons

These come from ss.47–58, 340–341 and Art. 22, and from *D.K. Basu*:

1. To know the **grounds of arrest**. Following *Pankaj Bansal* (2023) and *Prabir Purkayastha* (2024), these must be given **in writing**.
2. To be told of the **right to bail** in bailable offences.
3. To have a **relative or friend informed**.
4. To **meet a lawyer** during interrogation (s.38).
5. To be **produced before a magistrate within 24 hours** (ss.57–58).
6. To a **medical examination** (s.53).
7. To a **decent search**, with a woman searched by a woman.
8. To **free legal aid**.
9. To **compensation** for illegal detention (*Rudul Sah*, 1983; *Nilabati Behera*, 1993).

5. Preventive powers of police (ss. 168–172)

Police must try to **prevent** cognizable offences. They may **arrest to prevent** one if there is no other way, but cannot detain for more than 24 hours (s.170). They may prevent injury to public property (s.171). Under the new s.172, they may **detain or remove persons who resist lawful directions**.

6. Search and seizure (ss. 49, 96–110, 185–186)

- Courts issue **search warrants** (ss.96–99).
- A search must be made in the presence of **two independent local witnesses**, and a list of seized items prepared.
- The BNSS requires **audio-video recording** of search and seizure (s.105).
- During investigation, an officer may search **without a warrant** if delay would defeat the purpose. They must **record reasons** and send copies to the magistrate within 48 hours (s.185).
- s.107 allows **attachment of proceeds of crime**.
- Evidence from an illegal search is **not automatically inadmissible** but is weighed with caution (*Radha Kishan v. State of U.P.*, 1963).

7. Confessions and statements before a magistrate (s.183)

A Judicial Magistrate may record a confession or statement during investigation. The safeguards are:

- the magistrate must **warn** the accused that they are not bound to confess and that the confession may be used against them;
- the magistrate must be satisfied it is **voluntary**;
- the accused is given time for reflection;
- if the accused refuses, they must not be sent back to police custody.

The statement may be recorded by audio-video. A woman victim’s statement is recorded by a **woman magistrate** where possible.

8. Remand (s.187)

If investigation cannot be completed in 24 hours, the accused is produced before a magistrate, who may authorise detention.

- **Police custody** is up to 15 days, which may now be taken **in parts during the first 40 or 60 days**. This changes *CBI v. Anupam Kulkarni* (1992), which allowed police custody only in the first 15 days.
- **Total detention** cannot exceed **90 days** (offences punishable with death, life or 10 years or more) or **60 days** (other offences).
- If the chargesheet is not filed in time, the accused gets **default bail** as of right (*Sanjay Dutt*, 1994; *M. Ravindran*, 2021).

9. Police diary and police report (ss. 192–193)

Case diary (s.192): the investigating officer keeps a **day-by-day diary**. The court may use it to aid the trial, but it is **not evidence**. The accused cannot demand it, except when the police officer uses it to refresh memory (*Shamshul Kanwar*, 1995).

Police report (s.193): after investigation, a **chargesheet or closure report** is sent to the magistrate.

- Investigation in rape cases must be finished in 2 months.
- The victim must be told of progress within 90 days.
- **Further investigation** is allowed, but if done during trial, it needs the court's permission and must be completed in 90 days.
- On a closure report, the informant must be **heard** (*Bhagwant Singh*, 1985).

10. Inquest (ss. 194–196)

In cases of suicide, homicide, accidental or suspicious death, police hold an **inquest** in the presence of two respectable persons and report the **apparent cause of death** within 24 hours. A **post-mortem is compulsory** for deaths of women within 7 years of marriage.

A **magistrate's inquiry** is compulsory for deaths or disappearances in **police custody** (s.196).

An inquest only finds the apparent cause of death, not who is guilty (*Pedda Narayana*, 1975).

MODULE 4: BAIL, SECURITY AND MAINTENANCE

1. Bail (ss. 478–496)

Bail protects the **presumption of innocence** and personal liberty under Art. 21. Justice Krishna Iyer put it as "**bail is the rule, jail the exception**" (*State of Rajasthan v. Balchand*, 1977).

(a) Bailable offences (s.478). Bail is a **right**, and police or the court *must* release the accused. If the accused cannot furnish bail within a week, they are presumed **indigent** and released on a personal bond.

(b) Maximum detention of undertrials (s.479). An undertrial who has spent **half** the maximum sentence in custody must be released. A **first-time offender** is released after **one-third**. This does not apply to offences punishable with death or life.

(c) Non-bailable offences (s.480). Bail is **discretionary**. A magistrate should not grant bail where there are reasonable grounds to believe the person committed an offence punishable with death or life, **except** for a woman, a child, or a sick or infirm person. Conditions may be imposed.

(d) Anticipatory bail (s.482). A person who **fears arrest** for a non-bailable offence may apply to the **High Court or Sessions Court** for a direction that they be released on bail if arrested.

- *Gurbaksh Singh Sibbia* (1980) gave courts wide discretion.
- *Sushila Aggarwal* (2020) held anticipatory bail is ordinarily **not time-limited**.
- It is not available for rape or gang rape of minors.

(e) Special powers of the High Court and Sessions Court (s.483). These courts can grant bail in any case and **cancel bail** if the accused misuses liberty, tampers with evidence or threatens witnesses.

Factors courts consider:

- nature and gravity of the offence;
- severity of punishment;
- strength of evidence;
- chance of absconding;
- chance of tampering with evidence;
- criminal record.

***Satender Kumar Antil v. CBI* (2022)** laid down bail guidelines.

2. Security for keeping peace and good behaviour (ss. 125–143)

These are **preventive** provisions. They stop a crime before it happens; they do not punish.

- **After conviction** for breach of peace offences, the court may take a bond for **up to 3 years** (s.125).
- An **Executive Magistrate** may require a person likely to commit a breach of peace to give a bond for **up to 1 year** (s.126).
- Good behaviour bonds may be taken from:
    - persons spreading certain harmful matters (s.127);
    - **suspected persons** hiding to commit offences (s.128);
    - **habitual offenders**, for up to **3 years** (s.129).

Procedure: a written show-cause order setting out the information; an inquiry; then a bond or discharge. Failing to give security leads to imprisonment.

These powers must be used strictly, because they restrict liberty without a crime having been committed (*Madhu Limaye*, 1970).

3. Public order: unlawful assemblies (ss. 148–151)

An Executive Magistrate or police officer may order an **unlawful assembly to disperse**. If it does not, **civil force** may be used. If necessary, the **armed forces** may be used, causing as little injury as possible. Officers acting in good faith are **protected from prosecution** without Government sanction.

4. Public nuisance (ss. 152–163)

Under s.152, a magistrate may pass a **conditional order** to remove a public nuisance, such as:

- an obstruction on a public road;
- an unhealthy trade;
- a dangerous building;
- an unfenced well;
- a dangerous animal.

The person must comply or show cause. The court in *Municipal Council, Ratlam v. Vardichan* (1980) held that a municipality cannot plead lack of funds.

Section 163 (old s.144) allows the magistrate to pass **urgent orders** to prevent danger, riot or disturbance of public peace. The order lasts **2 months** and can be extended by the State to **6 months**.

- *Madhu Limaye* (1970) upheld the power as constitutional.
- *Anuradha Bhasin* (2020) held it must be **proportionate**, reasoned and not used to suppress legitimate expression.

5. Disputes about immovable property (ss. 164–167)

When a land or water dispute is likely to cause a **breach of peace**, the Executive Magistrate decides **who is in actual possession**, not who owns it. A person wrongfully dispossessed within **2 months** is treated as being in possession.

The property can be **attached** in an emergency (s.165). Disputes about **right of use** (such as a right of way) are covered in s.166. **Title is left to the civil court.**

6. Maintenance of wives, children and parents (ss. 144–147)

This is a **quick, secular remedy** to prevent **destitution and vagrancy**. It applies to every religion.

Who can claim (s.144): a person who has **sufficient means** must maintain:

- their **wife**, including a **divorced wife who has not remarried**, if she is unable to maintain herself;
- **minor children**, legitimate or illegitimate;
- **major children** who are unable to maintain themselves because of physical or mental abnormality;
- their **father and mother**.

Amount and procedure:

- The magistrate fixes a monthly allowance. There is **no upper limit**.
- **Interim maintenance** can be granted, and the application should be decided in 60 days.
- A wife loses the right if she lives in **adultery**, refuses to live with her husband **without sufficient reason**, or they live apart by **mutual consent**. A husband marrying again or keeping a mistress is sufficient reason for her to live separately.
- **Alteration** is allowed if circumstances change (s.146).
- **Enforcement** (s.147) is by a warrant to recover the money as a fine, and imprisonment of up to **1 month for each month unpaid**. The claim must be made **within 1 year** of the amount falling due.

Key cases:

- ***Shah Bano* (1985)**: s.125 CrPC applies to Muslim women.
- ***Danial Latifi* (2001)**: upheld the Muslim Women (Protection of Rights on Divorce) Act, 1986. The husband must make a **reasonable and fair provision for her whole future**, paid within the iddat period.
- ***Mohd. Abdul Samad v. State of Telangana* (2024)**: a divorced Muslim woman can **also** claim under s.125 CrPC (now s.144 BNSS).
- ***Rajnesh v. Neha* (2020)**: guidelines. Affidavits of assets are required, and maintenance runs from the date of application.
- ***Chaturbhuj v. Sita Bai* (2008)**: the object of the provision is to prevent vagrancy.
- ***Badshah v. Urmila Badshah Godse* (2014)**: a second wife who did not know of the first marriage was granted maintenance.

The 1986 Act in brief:

- A divorced Muslim woman gets a reasonable provision and maintenance within iddat, her **mahr**, and her property.
- After iddat, if she cannot maintain herself, her **relatives** who would inherit from her pay, and failing them the **State Wakf Board**.

MODULE 5: CHARGE, TRIAL AND RELATED PROCEDURES

1. Fair trial

A fair trial is the heart of criminal justice under Art. 21. Its elements are:

- **Presumption of innocence**, with proof beyond reasonable doubt (*Woolmington v. DPP*, 1935, the "golden thread"; *Kali Ram v. State of H.P.*, 1973).
- **Right to silence**: the accused cannot be compelled to testify, and no adverse comment may be made on silence (Art. 20(3); s.351; s.353).
- **Speedy trial** (*Hussainara Khatoon*; *P. Ramachandra Rao*, 2002).
- An **impartial judge**, an **open court**, a **lawyer** and **legal aid**.
- Evidence taken **in the presence of the accused**.
- The **right to cross-examine**.
- Supply of documents.
- Protection from **double jeopardy**.

Zahira Habibullah Sheikh (2004) explained that a fair trial is fair to the accused, the victim and society.

2. Limitation for taking cognizance (ss. 513–519)

To prevent stale prosecutions, cognizance is barred after:

- **6 months** for offences punishable with fine only;
- **1 year** for offences punishable with up to 1 year;
- **3 years** for offences punishable with 1 to 3 years.

There is **no limitation** for more serious offences.

- Time runs from the date of the offence or the date of knowledge (s.515).
- Certain periods are excluded (s.516).
- A **continuing offence** starts a fresh period every moment (s.518).
- The court may **condone delay** in the interest of justice (s.519).

In *Sarah Mathew* (2014), the Supreme Court held the relevant date is the date of **filing the complaint**, not the date of cognizance.

3. Charge (ss. 234–247)

A **charge** is the written accusation that tells the accused exactly what offence they must answer. Its purpose is **notice**, so that the accused can prepare a defence.

Contents (ss. 234–235): the offence, its name or definition, the section, and the particulars of **time, place, person or thing**. In criminal breach of trust, the gross sum over a period of up to one year may be stated.

Errors and changes:

- An error in the charge is **not fatal** unless the accused was **misled** and there was a **failure of justice** (s.238; *Willie Slaney v. State of M.P.*, 1956).
- The court may **alter or add to the charge** at any time before judgment, and witnesses may be recalled (ss.239–240).

Joinder of charges. The **basic rule** is that every distinct offence needs a **separate charge and a separate trial** (s.241). The exceptions are:

1. Offences of the **same kind within 12 months**, **up to five** of them under the BNSS (s.242).
2. Offences committed in the **same transaction** (s.243). The test is proximity of time, unity of place, unity of purpose, and continuity of action (*State of A.P. v. Cheemalapati Ganeswara Rao*, 1963).
3. **Doubt** about which offence the facts constitute: alternative charges may be framed (s.244).
4. Conviction for a **minor offence** included in the offence charged (s.245).
5. **Joint trial** of several accused involved in the same transaction (s.246).

4. Trial before a Court of Session (ss. 248–260)

The stages are:

1. The **Public Prosecutor opens** the case (ss.248–249).
2. **Discharge**: the accused may apply within 60 days. If there is no sufficient ground, the accused is discharged (s.250). At this stage the test is a **prima facie case / grave suspicion**, not proof (*Union of India v. Prafulla Kumar Samal*, 1979).
3. **Framing of charge** within 60 days of the first hearing (s.251).
4. The accused **pleads**. If they plead guilty, the court may convict (s.252).
5. **Prosecution evidence**: examination-in-chief, cross-examination and re-examination, possibly by video (s.254).
6. **Examination of the accused** under s.351 to explain the circumstances against them.
7. **Acquittal** if there is no evidence against the accused (s.255).
8. **Defence evidence** (s.256).
9. **Arguments** (s.257).
10. **Judgment** within 30 days of arguments, extendable to 45. If the accused is convicted, there is a **separate hearing on sentence** (s.258; *Santa Singh v. State of Punjab*, 1976).

5. Warrant case trials by magistrates (ss. 261–273)

On a police report:

1. Copies of documents are supplied.
2. Discharge if the charge is groundless (s.262).
3. Charge framed within 60 days (s.263).
4. Plea.
5. Prosecution evidence.
6. Defence evidence.

Otherwise than on a police report (complaint cases): the magistrate first takes **pre-charge evidence** (s.267), then discharges or frames the charge, and then the prosecution witnesses are recalled for cross-examination.

Conclusion: acquittal or conviction with a hearing on sentence (s.271). If the complainant is absent, discharge is possible in certain cases (s.272). For a **false accusation**, the court may order compensation (s.273).

6. Summons case trials (ss. 274–282)

- **No formal charge** is framed. The particulars of the offence are simply explained to the accused.
- The procedure is simpler and quicker.
- If the complainant is absent, the accused may be **acquitted** (s.279).
- The complainant may **withdraw** the complaint (s.280).
- The magistrate may **convert** a summons case into a warrant case (s.282).

7. Summary trials (ss. 283–288)

These are for **petty offences**, such as:

- offences punishable with up to 2 years;
- **theft of property worth up to ₹20,000**;
- house trespass;
- insult;
- criminal intimidation.

Under the BNSS, offences punishable with up to 3 years can also be tried summarily after hearing the accused. The procedure is that of summons cases. **Maximum sentence: 3 months.** Only a brief record and brief reasons are kept.

8. Evidence in inquiries and trials and commissions (ss. 307–336)

- Evidence is taken **in the presence of the accused or their lawyer**, now also by **video link** (s.308).
- A child victim of rape must not be confronted by the accused, though cross-examination is still ensured.
- Witnesses who are far away or important dignitaries can be examined on **commission** (ss.319–326).
- Reports of **Government scientific experts** can be used without calling them (s.329).
- Documents whose genuineness is **not disputed** need no formal proof; objection must be raised within 30 days (s.330).
- Under the new s.336, if a public servant, expert or investigating officer is transferred, retires or dies, their **successor** can depose.

9. Plea bargaining (ss. 289–300)

Plea bargaining means the accused **pleads guilty in return for a lighter sentence**. It was introduced in 2005.

- **Applies to** offences punishable with **up to 7 years**.

- **Does not apply** to offences against **women** or **children under 14**, or socio-economic offences.
- The accused must apply **within 30 days of the charge**. The court checks in private that it is **voluntary**.
- The parties work out a **mutually satisfactory disposition**, often with compensation to the victim.

Sentence:

- **half the minimum** sentence if a minimum is prescribed, otherwise **one-fourth** of the maximum;
- for **first-time offenders**, **one-fourth** of the minimum or **one-sixth** of the maximum.

The judgment is **final**, with no appeal except by writ or SLP. Statements made in a plea bargaining application cannot be used for any other purpose. Before 2005, the practice was held illegal (*State of U.P. v. Chandrika*, 2000).

10. Double jeopardy: autrefois acquit and autrefois convict (s.337 and Art. 20(2))

A person **tried and convicted or acquitted** by a competent court **cannot be tried again for the same offence**, or on the same facts for another offence that could have been charged.

Exceptions:

- a **distinct offence**, with State consent;
- **new consequences** that appear later, for example the victim of an assault dies afterwards;
- the first court was **not competent**.

A **discharge is not an acquittal**.

Article 20(2) protects only against **prosecution and punishment** twice. Section 337 is wider and covers acquittal too.

Cases:

- *Maqbool Hussain* (1953): customs proceedings are not “prosecution”.
- *Thomas Dana* (1959): “same offence” means identical ingredients.
- *Kolla Veera Raghav Rao* (2011): a conviction under NI Act s.138 barred a later trial for cheating on the same facts.

11. Compounding and withdrawal (ss. 359, 360)

Compounding (s.359): the victim compromises with the accused.

- **Table 1** offences can be compounded **without the court’s permission**.
- **Table 2** offences need the **court’s permission**.
- Compounding has the effect of an **acquittal**.

Even **non-compoundable** offences can be **quashed by the High Court** on settlement in private disputes, but not in heinous offences (*Gian Singh*, 2012; *Narinder Singh*, 2014).

Withdrawal from prosecution (s.360): the PP may withdraw **with the court's consent** before judgment.

- Before the charge is framed, the effect is **discharge**. After, it is **acquittal**.
- The **victim must now be heard**.
- The PP must act **independently and in good faith**, not as a mouthpiece of the Government. The court checks that the withdrawal is in the public interest (*Sheonandan Paswan*, 1987; *State of Kerala v. K. Ajith*, 2021).

12. Irregular proceedings (ss. 506–512, 525–527)

The principle is that **procedural mistakes do not cancel proceedings unless they cause a failure of justice**.

- s.506 lists irregularities that **do not vitiate** proceedings, such as taking cognizance or issuing a search warrant by a magistrate not empowered, done in good faith.
- s.507 lists those that **do vitiate**, such as trying an offender, passing a sentence or deciding an appeal without power.
- Trial in the **wrong place** (s.508), an **error in the charge** (s.510) or an **error in sanction** (s.511) is not fatal unless justice failed.
- A judge must **not try a case in which they are personally interested** (s.525).

13. Inherent powers of the High Court (s.528, CrPC 482)

The High Court has **inherent powers** to:

- give effect to orders under the BNSS;
- **prevent abuse of the process of court**;
- **secure the ends of justice**.

These powers are used **sparingly**, mainly to **quash FIRs or proceedings**.

***State of Haryana v. Bhajan Lal* (1992)** lists seven categories where quashing is proper:

1. the allegations do not make out an offence;
2. no cognizable offence is disclosed;
3. the uncontroverted allegations disclose no offence;
4. only a non-cognizable offence is disclosed;
5. the allegations are absurd;
6. there is a legal bar to the proceedings;
7. the proceedings are **mala fide**.

Other cases: *R.P. Kapur* (1960) and *Neeharika Infrastructure* (2021), which held the High Court should not pass blanket "no coercive steps" orders.

MODULE 6: JUDGMENT, PROBATION, APPEALS, REVISION, EXECUTION

1. Judgment (ss. 392–406)

- A judgment is pronounced in **open court** and uploaded online within 7 days.
- It must state the **points for determination, the decision and the reasons** (s.393).
- **Special reasons** must be given for awarding **death** instead of life imprisonment.
- The court may order **compensation** to the victim (s.395; *Ankush Shivaji Gaikwad*, 2013, which said courts must consider compensation in every case).
- A **Victim Compensation Scheme** exists (s.396), and a new **Witness Protection Scheme** (s.398).
- Once signed, a judgment **cannot be altered** except to correct clerical or arithmetical errors (s.403).

2. Confirmation of death sentence (ss. 407–412)

A Sessions Court's death sentence **cannot be executed unless confirmed by the High Court**. The High Court may:

- take further evidence;
- confirm the sentence;
- reduce it;
- order a retrial;
- acquit.

A bench of **two judges** must sign the confirmation.

Death is given only in the "**rarest of rare**" cases (*Bachan Singh*, 1980), after weighing aggravating and mitigating circumstances (*Machhi Singh*, 1983). *Manoj v. State of M.P.* (2022) requires a mitigation investigation.

3. Probation and parole

Probation is a **reformative**, non-institutional treatment: the offender is released under supervision instead of being sent to prison. This avoids mixing first offenders with hardened criminals.

Probation of Offenders Act, 1958:

- **s.3**: release after **admonition** for minor offences (punishable with up to 2 years) by first offenders.
- **s.4**: release on **probation of good conduct** on a bond of up to 3 years, for offences not punishable with death or life.
- **s.5**: compensation to the victim.
- **s.6**: offenders **under 21** should not be imprisoned unless the court gives reasons.
- **s.12**: conviction carries **no disqualification**.

- **ss.13–14**: **Probation officers** inquire into the offender's background, report to the court, supervise the probationer, and help with rehabilitation and employment.

The **judiciary** has applied the Act liberally:

- *Rattan Lal v. State of Punjab* (1965): applied it retrospectively as a beneficial law.
- *Ishar Das v. State of Punjab* (1972): applied to a young offender.
- But where a statute fixes a **mandatory minimum**, probation is not possible (*State of M.P. v. Vikram Das*, 2019).

Parole is the **temporary or early release of a convict** who is already serving a sentence. It is granted by the **executive** under prison rules, for reasons such as family needs or good conduct. **Furlough** is a periodic release as an incentive for good conduct (*Asfaq v. State of Rajasthan*, 2017).

Probation	Parole
Given **instead of** prison	Given **after** serving part of the sentence
By the **court**	By the **executive**
Under the Probation of Offenders Act / s.401 BNSS	Under prison rules
Judicial function	Administrative function

4. Appeals (ss. 413–435)

- **No appeal lies unless the law provides one** (s.413). However, the **victim** can appeal against an acquittal, a conviction for a lesser offence, or inadequate compensation (*Mallikarjun Kodagali*, 2018).
- **Appeals against conviction** go:
  - from a Magistrate to the Sessions Court;
  - from a Sessions Court, or a Magistrate's sentence of more than 7 years, to the High Court;
  - from the High Court's original jurisdiction to the Supreme Court.
- There is **no appeal** if the accused **pleaded guilty** (except on the sentence), or in **petty cases** with very small sentences or fines.
- The State may appeal against an **inadequate sentence** (s.418).
- An appeal against **acquittal** needs the **High Court's leave** (s.419). A complainant needs **special leave** within 6 months (public servant) or 60 days (others).
- An acquittal strengthens the presumption of innocence, so it is reversed only if **perverse** (*Chandrappa v. State of Karnataka*, 2007).
- The appellate court may **suspend the sentence and grant bail** pending appeal (s.430).

5. Reference and revision (ss. 436–445)

Reference (s.436): when a subordinate court doubts the **validity of a law** on which the case depends, it must **refer** the question to the High Court.

Revision (ss. 438, 442): the High Court or Sessions Judge can **call for the record** to check the **correctness, legality or propriety** of an order.

- There is no revision against **interlocutory orders** (*Madhu Limaye v. State of Maharashtra*, 1977, explained intermediate orders).
- A party cannot file a **second revision** after one court has decided.
- A revision court **cannot convert an acquittal into a conviction**; it can only order a retrial.
- A revision is **not allowed where an appeal lay** but was not filed.

Appeal	Revision
A **right** given by statute	A **discretion** of the court
Covers both facts and law	Covers legality and propriety only
Can reverse an acquittal	Cannot convert an acquittal into a conviction

6. Transfer of cases (ss. 446–452)

- The **Supreme Court** can transfer cases **between States** for the ends of justice (s.446). In the Best Bakery case, the trial was moved from Gujarat to Maharashtra. The apprehension of an unfair trial must be **reasonable**, not imaginary (*Maneka Sanjay Gandhi v. Rani Jethmalani*, 1979).
- The **High Court** can transfer within the State if a fair trial is not possible, a difficult question of law arises, or for the convenience of parties and witnesses (s.447).
- The **Sessions Judge** can transfer within the sessions division (s.448).

7. Execution, suspension, remission and commutation (ss. 453–477)

- Sentences are executed by **warrants**.
- A **pregnant woman's** death sentence **must be commuted** to life imprisonment (s.455).
- Detention during investigation and trial is **set off** against the sentence (s.468).
- A new **mercy petition** procedure applies to death row convicts (s.472).
- The Government may **suspend or remit** a sentence (s.473) and **commute** it (s.474): death to another punishment, life imprisonment to not less than 7 years, and so on.
- A person serving life for an offence punishable with death **cannot be released before 14 years** (s.475).
- In certain cases the State must act with the Centre's **concurrence** (s.477; *Union of India v. V. Sriharan*, 2016).

These powers are separate from the **constitutional pardon powers** of the President (Art. 72) and Governor (Art. 161), which are subject to limited judicial review (*Epuru Sudhakar*, 2006). Unexplained **delay in deciding a mercy petition** can justify commutation (*Shatrughan Chauhan*, 2014).

8. Tender of pardon (ss. 343–345)

To obtain evidence against the main offenders, a magistrate may **pardon an accomplice** on condition of a **full and true disclosure**. This applies to Sessions-triable offences or offences punishable with 7 years or more.

- The pardoned person becomes an **approver** and is examined as a witness.
- The approver is kept in custody until the trial ends.
- After commitment, the trial court may also tender a pardon (s.344).
- If the approver **breaks the condition**, they can be tried for the offence (s.345).

The approver's evidence needs **corroboration** (*Suresh Chandra Bahri*, 1995).

9. Accused persons of unsound mind (ss. 367–378)

If the accused appears to be of unsound mind and **incapable of making a defence**:

- the court gets a medical opinion;
- **postpones** the inquiry or trial;
- may **release them on security** or send them to a care facility.

The trial resumes when they recover.

If the accused was of unsound mind **at the time of the act** (BNS s.22), they are **acquitted**, but the court must record whether they did the act. They are then kept in **safe custody** or handed to a relative (ss.373–374).

The accused must prove insanity on a **preponderance of probabilities** (*Dahyabhai*, 1964).

MODULE 7: JUVENILE JUSTICE

(The syllabus title mentions the 1986 Act, but the content covers the JJ (Care and Protection of Children) Act, 2015.)

1. Concept and history

Juvenile justice is based on the idea that **children are not small adults**. Their offences come from immaturity and circumstances, so the law aims at **reformation, rehabilitation and the best interests of the child**, not punishment. This rests on the doctrine of ***parens patriae***: the State acts as guardian of the child.

History:

- Apprentices Act, 1850.
- Reformatory Schools Act, 1897.
- Provincial Children Acts (Madras 1920, Bengal 1922, Bombay 1924).
- Children Act, 1960.
- *Sheela Barse v. UOI* (1986) led to the first uniform law, the **JJ Act, 1986** (juvenile age: 16 for boys, 18 for girls).

- India ratified the **UN Convention on the Rights of the Child** in 1992.
- **JJ Act, 2000**: the age was made 18 for all.
- After the **Nirbhaya case (2012)**, the **JJ Act, 2015** allowed **16–18 year-olds accused of heinous offences** to be tried as adults after an assessment.
- **2021 amendment**: gave a bigger role to **District Magistrates**.

International standards: the UNCRC, the **Beijing Rules** (1985), the **Riyadh Guidelines** and the **Havana Rules** (1990).

BNS provisions:

- **s.20**: a child **under 7** cannot commit any offence. This is complete immunity.
- **s.21**: a child **aged 7 to 12** is not liable if they lack the **maturity to understand** the nature and consequences of the act. This is partial immunity.

2. Child in conflict with law vs child in need of care and protection

- A **child in conflict with law (CCL)** is a child under 18 **alleged or found to have committed an offence**.
- A **child in need of care and protection (CNCP)** is a child who is a **victim of circumstances**. Examples:
  - homeless, begging or working illegally;
  - abused or neglected;
  - orphaned, abandoned or surrendered;
  - missing or runaway;
  - trafficked or at risk of child marriage;
  - affected by disaster or conflict;
  - with parents unfit to care for them.

CCL	CNCP
Handled by the **Juvenile Justice Board**	Handled by the **Child Welfare Committee**
Placed in observation or special homes	Placed in children’s homes, foster care or adoption
Focus: reformation	Focus: care and protection

3. Juvenile Justice Board and Children’s Court

The **JJB** consists of a **Principal Magistrate** (a JMFC) and **two social workers**, one of whom must be a woman.

Key rules:

- A child is **never placed in a police lock-up or jail**, and is produced before the JJB within 24 hours.
- **Bail is the norm** (s.12). It is refused only if release would expose the child to danger or criminals, or defeat the ends of justice.
- The inquiry must finish in **4 months**.

Offences are classed as:

- **petty**: punishable with up to 3 years;
- **serious**: 3 to 7 years;
- **heinous**: a **minimum of 7 years** or more.

Shilpa Mittal (2020) held that an offence with no minimum sentence is "serious", not "heinous".

For a heinous offence by a 16–18 year-old, the JJB makes a **preliminary assessment** within 3 months of the child's mental and physical capacity and understanding. It may then send the case to the **Children's Court** (a Sessions Court) for trial as an adult (s.15).

Orders the JJB can make: admonition, counselling, community service, fine, probation, or placement in a **special home** for up to **3 years**.

No child gets a death sentence or life imprisonment without release.

Cases:

- *Pratap Singh v. State of Jharkhand* (2005): age is determined on the **date of the offence**.
- *Salil Bali* (2013) and *Subramanian Swamy v. Raju* (2014): upheld the scheme.
- *Jitendra Singh* (2013): a claim of juvenility can be raised **at any stage**.

4. Child Welfare Committee, SJPU and Childline

Child Welfare Committee (CWC):

- A **chairperson and four members**, including a woman and a child expert, in every district.
- It has the powers of a magistrate.
- **Functions:**
  - receive children produced before it, within 24 hours;
  - inquire into their situation and order social investigation reports;
  - decide placement (restoring the child to family, children's home, fit person, foster care);
  - declare children **legally free for adoption**;
  - inspect institutions;
  - ensure rehabilitation.
- The inquiry should be completed in 4 months.

Special Juvenile Police Unit (SJPU): each police station has a **Child Welfare Police Officer**. Each district has an SJPU led by a DSP-rank officer with two social workers. They handle children sensitively: in plain clothes, with no handcuffs and no lock-up.

Childline (1098): a 24-hour emergency helpline that rescues children in distress and brings them before the CWC. It is now linked with the 112 emergency system under Mission Vatsalya.

Rehabilitation is done through family-based care where possible:

- **adoption**;
- **foster care** (s.44);
- **sponsorship** (financial support to the family, s.45);
- **after-care** for young people leaving institutions at 18, until age 21 (s.46).

5. Institutions

Institution	For whom
Observation Home (s.47)	CCL, temporarily, during the inquiry
Special Home (s.48)	CCL found to have committed an offence, for rehabilitation
Place of Safety (s.49)	Children aged 16–18 accused or convicted of heinous offences, and persons over 18
Children's Home (s.50)	CNCP, for long-term care, education and training
Open Shelter (s.43)	Short-term support
Fit Facility (s.51)	A recognised organisation that temporarily takes responsibility for a child
Fit Person (s.52)	A recognised person who temporarily takes responsibility for a child

- **Registration** of all child care institutions is compulsory.
- Standards of food, health, education and recreation are fixed by rules.
- **Inspection committees** visit regularly, and there are **social audits**.
- The **NCPCR / SCPCR** monitor implementation.
- *Sampurna Behrua v. UOI* (2018) pushed for proper implementation.

6. Adoption under the JJ Act; CARA; inter-country adoption

The JJ Act provides a **secular adoption law** for orphaned, abandoned and surrendered children. Any person of any religion can adopt (*Shabnam Hashmi v. UOI*, 2014), unlike the Hindu Adoptions and Maintenance Act, which applies only to Hindus.

Steps:

1. The CWC declares the child **legally free for adoption**. Surrendering parents get **60 days** to reconsider.
2. Prospective adoptive parents register on **CARINGS** (the online portal).
3. A **home study** is done.
4. The child is matched and placed in pre-adoption foster care.
5. The **District Magistrate passes the adoption order** (since 2021; earlier this was the court).

Eligibility of adoptive parents:

- physically, mentally and financially fit;
- a couple needs both spouses' consent and **2 years of a stable marriage**;
- a **single woman** may adopt a child of any gender;
- a **single man cannot adopt a girl**;
- the age gap between child and parent must be at least **25 years**.

Effect (s.63): the child becomes the adoptive parents' child **for all purposes, including inheritance**. Ties with the birth family end. Adopting outside this procedure is punishable (s.80).

CARA (Central Adoption Resource Authority, s.68): a statutory body under the Ministry of Women and Child Development. It:

- is India's **Central Authority under the Hague Convention, 1993**;
- **frames adoption regulations** (the Adoption Regulations, 2022);
- promotes in-country adoption;
- regulates inter-country adoption and issues the **NOC** for it;
- supervises the State and specialised adoption agencies;
- runs CARINGS.

Inter-country adoption (s.59):

- Allowed only if no Indian family adopts the child within **60 days**.
- **Preference order:** NRIs, then OCIs, then foreigners.
- Applications come through an **Authorised Foreign Adoption Agency**.
- CARA issues the NOC and the DM passes the order.
- There is **post-adoption follow-up for 2 years**.

Lakshmi Kant Pandey v. UOI **(1984)** laid down the original safeguards against trafficking: priority to Indian families, recognised agencies only, home studies, judicial scrutiny, follow-up reports, and no commercial element. The guiding principle throughout is the **best interests of the child**.

LAW OF CRIMINAL PROCEDURE — BNSS, 2023 (Exam Answers)

> Pattern followed: each syllabus topic is written as an exam question → answer with **meaning, provisions, key points, cases, conclusion**. Old CrPC, 1973 section numbers are given in brackets as `(CrPC xx)` because many textbooks and past papers still use them.

MODULE 1 — INTRODUCTION TO BNSS, 2023

Q1. Distinguish between the Inquisitorial and Adversarial (Accusatorial) systems of criminal justice. Which system does India follow?

Adversarial system (England, USA, India):

- Two parties, the prosecution and the defence, fight the case before a **neutral judge** who acts like an umpire.
- The accused is **presumed innocent**. The prosecution must prove guilt **beyond reasonable doubt**.
- The parties collect and present the evidence. The judge does not investigate.
- Oral evidence, cross-examination and strict rules of evidence are central.

Inquisitorial system (France, Germany and other civil-law countries):

- The judge (an "investigating magistrate") **actively investigates**, questions witnesses and directs the inquiry.
- The aim is finding the truth, not deciding a contest between two parties.
- Written dossiers matter more and evidence rules are less strict.

Basis	Adversarial	Inquisitorial
Role of judge	Passive umpire	Active investigator
Search for truth	Through contest between parties	Through judicial inquiry
Evidence	Collected by parties	Collected under court direction
Cross-examination	Central	Limited
Right to silence	Strong	Weaker

Indian position: India follows the **adversarial system with some inquisitorial features**:

- BNSS s.348 (CrPC 311): the court can summon any witness.
- BSA s.168 (IEA 165): the judge has power to put any question.
- BNSS s.351 (CrPC 313): the court examines the accused.
- The Malimath Committee (2003) recommended adding more inquisitorial elements.
- *Zahira Habibullah Sheikh v. State of Gujarat* (2004): the judge is not a mere spectator but must participate actively to find the truth.

Q2. International norms and constitutional perspectives (Arts. 14, 20, 21, 22) on criminal justice

International norms

- **UDHR, 1948**: Art. 9 (no arbitrary arrest), Art. 10 (fair public hearing), Art. 11 (presumption of innocence; no retrospective punishment).
- **ICCPR, 1966**: Art. 9 (liberty and security; prompt production before a judge), Art. 14 (fair trial, legal aid, no self-incrimination, no double jeopardy), Art. 15 (no ex post facto law).
- UN Basic Principles on the Role of Lawyers and the Convention against Torture.

Constitutional safeguards

- **Art. 14** (equality before law): procedure must not be arbitrary. Special courts need a reasonable classification (*State of W.B. v. Anwar Ali Sarkar*, 1952).
- **Art. 20**:
  - 20(1) no ex post facto criminal law.
  - 20(2) no double jeopardy (BNSS s.337).
  - 20(3) no self-incrimination (*Nandini Satpathy v. P.L. Dani*, 1978; *Selvi v. State of Karnataka*, 2010, which held narco-analysis, polygraph and brain-mapping cannot be done without consent).
- **Art. 21**: procedure must be "fair, just and reasonable" (*Maneka Gandhi v. UOI*, 1978). It includes:
  - the right to a speedy trial (*Hussainara Khatoon v. State of Bihar*, 1979);
  - free legal aid (*M.H. Hoskot v. State of Maharashtra*, 1978);
  - protection against custodial torture (*D.K. Basu v. State of W.B.*, 1997);
  - the right to a fair trial (*Zahira Habibullah*).
- **Art. 22**:
  - 22(1) right to be told the grounds of arrest and to consult a lawyer;
  - 22(2) production before a magistrate within 24 hours.
  - These rights do not apply to enemy aliens and preventive detention.
- **Art. 39A**: free legal aid.

Q3. Rationale of criminal procedure; salient features of BNSS 2023; police, prosecution, defence and prison authorities

Rationale: substantive criminal law (BNS) defines offences. Procedural law (BNSS) provides the **machinery to enforce it**: investigation, arrest, trial, sentencing and appeal.

It must balance **effective crime control** with **due process** and the rights of the accused and the victim.

Salient features of BNSS 2023 (in force from **1 July 2024**; replaced CrPC 1973; **531 sections**):

1. **Zero FIR and e-FIR** (s.173). A preliminary enquiry within 14 days is allowed for offences punishable with 3–7 years.
2. **Mandatory forensic** team visit for offences punishable with 7 years or more (s.176(3)).
3. **Audio-video recording** of search and seizure (s.105). Trials, evidence and summons can be done by electronic means (ss. 530, 64, 254).
4. **Trial in absentia** of proclaimed offenders (s.356).
5. **Timelines**:
    - supply of documents within 14 days (s.230);
    - discharge application within 60 days;
    - charge framed within 60 days of the first hearing;
    - judgment within 30 days of arguments, extendable to 45 days (s.258);
    - chargesheet/progress information to the victim within 90 days.
6. **Community service** as a punishment for petty offences (s.23).
7. **Undertrial relief**: a first-time offender is released after serving **one-third** of the maximum sentence (s.479).
8. **Directorate of Prosecution** (s.20).
9. **Witness Protection Scheme** (s.398).
10. **Sanction for prosecuting a public servant** is deemed given if not decided within **120 days** (s.218).
11. **Handcuffing** is allowed for habitual offenders, escapees and those accused of organised crime or terrorism (s.43(3)).
12. **Attachment and forfeiture of proceeds of crime** (s.107).
13. **Metropolitan Magistrates and Assistant Sessions Judges abolished**.
14. **Mercy petition** procedure (s.472).

Functionaries

- **Police** (Police Act, 1861 and BNSS): prevention of offences, investigation, arrest, search, chargesheet.
- **Prosecution** (ss.18–20): Public Prosecutors, Assistant Public Prosecutors and the Directorate of Prosecution. They act as **ministers of justice**, not persecutors.
- **Defence**: Art. 22(1); s.340 (right to be defended); s.341 (legal aid at State expense).
- **Prison authorities** (Prisons Act, 1894; Model Prison Manual): custody, reform and rehabilitation. Prisoners keep their fundamental rights (*Sunil Batra v. Delhi Admin.*, 1978).

Q4. Object, scope and significance of BNSS

- **Object**: to consolidate and amend the law of criminal procedure and make justice **speedy, technology-driven and victim-centric**. It also aims to “decolonise”

criminal law.
- **Scope**: applies to the whole of India. Parts relating to Chapters IX, XI and XII do not apply to Nagaland and tribal areas unless notified (s.1). It is a procedural law that applies to offences under the BNS and under special laws (s.4), unless the special law provides otherwise (s.5).
- **Significance**: it protects individual liberty while enabling enforcement. It fixes timelines, uses technology, and gives the victim rights to be heard, to receive information and to appeal.

Q5. Important definitions under Section 2 BNSS (CrPC 2)

- **Audio-video electronic means** (2(1)(a)): video conferencing, recording of search and seizure, etc. *(new)*
- **Bail** (2(1)(b)): release of a person accused or suspected of an offence from custody, on conditions set by an officer or court, on executing a bond or bail bond. *(new definition)*
- **Bailable offence** (2(1)(c)): an offence shown as bailable in the First Schedule or made bailable by law. All others are non-bailable.
- **Charge** (2(1)(f)): includes any head of charge when the charge contains more than one head.
- **Cognizable offence** (2(1)(g)): an offence for which police may **arrest without warrant**. **Non-cognizable offence** (2(1)(o)): police cannot arrest without a warrant.
- **Complaint** (2(1)(h)): an allegation made **orally or in writing to a Magistrate** asking them to take action. It does **not include a police report**. If a police report in a non-cognizable case discloses an offence, the report is treated as a complaint.
- **Inquiry** (2(1)(k)): every inquiry, other than a trial, conducted by a Magistrate or Court.
- **Investigation** (2(1)(l)): all proceedings for collecting evidence conducted by a police officer or any person authorised by a Magistrate (other than a Magistrate).
- **Judicial proceeding** (2(1)(m)): any proceeding in which evidence is or may be legally taken on oath.
- **Officer in charge of police station** (2(1)(r)), **Police report** (2(1)(u)), **Public Prosecutor** (2(1)(w)).
- **Summons case** (2(1)(y)): an offence that is not a warrant case. **Warrant case** (2(1)(za)): an offence punishable with death, life imprisonment, or imprisonment **exceeding two years**.
- **Victim** (2(1)(z)): a person who has suffered loss or injury because of the act or omission of the accused, including the guardian or legal heir.

Distinction: Inquiry vs Investigation vs Trial

- **Investigation** is done by the police and collects evidence.
- **Inquiry** is done by a Magistrate before trial (e.g. a s.225 inquiry or a maintenance proceeding).
- **Trial** is the judicial determination of guilt and ends in conviction or acquittal.

Q6. Hierarchy and powers of criminal courts (ss. 6–17, 21–29)

Classes of criminal courts (s.6), besides the High Courts and courts under other laws:

1. Courts of Session
2. Judicial Magistrates of the First Class
3. Judicial Magistrates of the Second Class
4. Executive Magistrates

(Metropolitan Magistrates and Assistant Sessions Judges have been dropped.)

- s.7: territorial divisions (sessions divisions and districts).
- s.8: the Court of Session is presided over by a Sessions Judge, appointed by the High Court. Additional Sessions Judges are also appointed.
- s.9: Courts of Judicial Magistrates.
- s.10: Chief Judicial Magistrate (CJM) and Additional CJM.
- s.11: Special Judicial Magistrates.
- s.12: local jurisdiction.
- s.13: subordination. The CJM is subordinate to the Sessions Judge, and other JMs are subordinate to the CJM.
- ss.14–17: Executive Magistrates, District Magistrate (DM), Sub-Divisional Magistrate (SDM), Special Executive Magistrates.

Offences triable by (s.21): BNS offences are triable by the High Court, the Court of Session, or the court shown in the First Schedule. Rape-related offences should, as far as practicable, be tried by a court presided over by a woman.

Sentencing powers

- **s.22**: the High Court may pass any sentence authorised by law. A Sessions Judge or Additional Sessions Judge may pass any sentence, but **a death sentence needs confirmation by the High Court**.
- **s.23** Magistrates:
  - **CJM**: any sentence except death, life imprisonment, or imprisonment over **7 years**.
  - **JMFC**: up to **3 years**, or a fine up to **₹50,000**, or **community service**, or a combination.
  - **JM Second Class**: up to **1 year**, or a fine up to **₹10,000**, or community service, or a combination.
- s.24: imprisonment in default of fine (limits apply).
- s.25: sentences for several offences at one trial. The court may order them to run consecutively or concurrently. The aggregate must not exceed **20 years**.
- ss.26–29: mode of conferring powers; continuance of powers; withdrawal of powers.

Q7. Powers of superior police officers and aid to Magistrates and police (ss. 30–34)

- **s.30** (CrPC 36): police officers **superior in rank** to an officer in charge of a police station may exercise the same powers throughout their area.
- **s.31** (CrPC 37): **every person is bound to assist** a Magistrate or police officer who reasonably demands help:
    a. in arresting or preventing the escape of a person;
    b. in preventing or suppressing a breach of the peace;
    c. in preventing injury to railways, canals, telegraph or public property.
- **s.32** (CrPC 38): a person who aids someone (other than a police officer) executing a warrant is protected.
- **s.33** (CrPC 39): **public to give information** about certain offences (e.g. offences against the State, murder, robbery, dacoity, criminal trespass by night).
- **s.34** (CrPC 40): village officers must report information (e.g. residence of a proclaimed offender, suspicious deaths).

Q8. Public Prosecutors and their functions (ss. 18–20)

- **s.18** (CrPC 24): the Central or State Government appoints **Public Prosecutors (PP) and Additional PPs** for the High Court, in consultation with the High Court. District PPs are appointed from a panel prepared by the DM in consultation with the Sessions Judge. Eligibility: **7 years** of practice as an advocate. A **Special PP** needs **10 years**. The victim may engage an advocate to assist the prosecution (s.18(8) proviso).
- **s.19** (CrPC 25): **Assistant Public Prosecutors** in Magistrates' courts. A police officer cannot be appointed APP (with limited exceptions).
- **s.20** *(new)*: **Directorate of Prosecution**, headed by a Director (15 years' practice or a Sessions Judge). It monitors cases, gives opinions on filing appeals, and scrutinises police reports.

Functions / role of PP

- Conducts the prosecution (s.338). Is in charge of the case in Sessions trials (s.248).
- Can apply for **withdrawal from prosecution** with the court's consent (s.360).
- Gives opinion on bail, appeals and so on.

Role: the PP is an **officer of the court and a minister of justice**, not a partisan. They must place all evidence fairly, including evidence favouring the accused (*Shiv Kumar v. Hukam Chand*, 1999; *Sheonandan Paswan v. State of Bihar*, 1987).

MODULE 2 — JURISDICTION OF CRIMINAL COURTS IN INQUIRIES AND TRIALS

Q9. General principle of jurisdiction of criminal courts (ss. 197–209)

General rule, s.197 (CrPC 177): every offence is ordinarily inquired into and tried by a court within whose **local jurisdiction it was committed**.

Exceptions and special rules:

- **s.198** (CrPC 178): **uncertain place**. Where it is uncertain in which of several areas the offence was committed, or it was committed partly in one area and partly in another, or it is a **continuing offence**, or it consists of several acts in different areas, any of those courts may try it.
- **s.199** (CrPC 179): offence triable where the **act is done or the consequence ensues**.
- **s.200** (CrPC 180): an act that is an offence because of its relation to another offence (e.g. abetment, receiving stolen property) is triable where either act was done.
- **s.201** (CrPC 181): special places for certain offences:
  - thug or dacoity: where committed or where the accused is found;
  - kidnapping/abduction: where the person was kidnapped, conveyed, concealed or detained;
  - theft/extortion/robbery: where committed or where the property is possessed;
  - criminal misappropriation/breach of trust: where the property was received, retained or accounted for.
- **s.202** (CrPC 182): offences committed by **letters or electronic communication** are triable where sent or received. Bigamy is triable where the offender resides or the first spouse resides.
- **s.203** (CrPC 183): offence committed **during a journey or voyage** is triable in any area through which the person or thing passed.
- **s.204** (CrPC 184): offences triable together may be tried by any competent court.
- **s.205** (CrPC 185): State Government may direct cases to be tried in a different sessions division.
- **s.206** (CrPC 186): **High Court decides** in case of doubt.
- **s.207** (CrPC 187): a Magistrate may issue summons or warrant for an offence committed beyond their jurisdiction.
- **s.208** (CrPC 188): **offence committed outside India** by a citizen of India (anywhere), or by anyone on an Indian-registered ship or aircraft, is triable as if committed at any place in India where the person is found. **Previous sanction of the Central Government** is needed.
- **s.209** (CrPC 189): evidence about offences committed outside India may be received through depositions and exhibits.

Cases: *State of M.P. v. Suresh Kaushal* (2003); *Y. Abraham Ajith v. Inspector of Police* (2004) (cause of action concept is not applicable to criminal cases); *Dashrath Rupsingh Rathod v. State of Maharashtra* (2014) (cheque bounce jurisdiction).

Q10. Initiation of proceedings / cognizance (ss. 210–214)

Cognizance means the Magistrate **applies their judicial mind** to the facts with a view to proceeding further (*S.K. Sinha, Chief Enforcement Officer v. Videocon International*, 2008). It is taken of the **offence, not of the offender**.

s.210 (CrPC 190): a Magistrate (CJM, JMFC, or a JM-II if empowered) may take cognizance:

a. on receiving a **complaint** (including one filed under a special law);
b. on a **police report** (including one submitted electronically);
c. on **information from any person other than a police officer**, or on their **own knowledge**.

- **s.211** (CrPC 191): when cognizance is taken under (c), the accused must be told they may have the case transferred to another Magistrate.
- **s.212** (CrPC 192): the CJM may make over the case to a subordinate Magistrate.
- **s.213** (CrPC 193): a **Court of Session cannot take cognizance as a court of original jurisdiction** unless the case is **committed** by a Magistrate (exceptions are provided by law).
- **s.214** (CrPC 194): Additional Sessions Judges try cases made over to them.

Q11. Exceptions to the general rule — limitations on cognizance (ss. 215–222)

These are cases where cognizance **cannot be taken without a complaint or sanction**:

- **s.215** (CrPC 195): prosecution for **contempt of lawful authority of public servants**, for offences against **public justice**, and for offences relating to **documents given in evidence**. It needs a written complaint by the public servant or court concerned.
    - *Iqbal Singh Marwah v. Meenakshi Marwah* (2005): s.195(1)(b)(ii) applies only when the forgery is committed while the document is in the custody of the court.
- **s.216**: procedure for witnesses facing threats *(new)*.
- **s.217** (CrPC 196): offences **against the State** and criminal conspiracy need sanction from the Central or State Government.
- **s.218** (CrPC 197): prosecution of **judges and public servants** for acts done in discharge of official duty needs prior sanction. **Deemed sanction if not decided within 120 days**. No sanction is needed for offences like sexual offences against women.
- **s.219** (CrPC 198): offences against **marriage** (BNS ss.81–84) need a complaint by the aggrieved person.
- **s.220** (CrPC 198A): cruelty by husband or relatives (BNS s.85) needs a police report or a complaint by the aggrieved person or their relatives.
- **s.221** (CrPC 198B): cognizance of the offence of sexual intercourse by husband during separation.
- **s.222** (CrPC 199): **defamation** needs a complaint by the aggrieved person. If the defamed person is a high constitutional functionary, the Public Prosecutor files the complaint in the Court of Session.

Q12. Complaint to Magistrate (ss. 223–226)

- **s.223** (CrPC 200): the Magistrate **examines the complainant and witnesses on oath** and records it in writing. *New proviso*: **no cognizance without giving the accused an opportunity of being heard.** Examination is not needed if the complaint is by a public servant acting in discharge of duty, or by a court, or if the case is made over.
- **s.224** (CrPC 201): if the Magistrate is not competent, they return the complaint for presentation to the proper court.
- **s.225** (CrPC 202): **postponement of issue of process**. The Magistrate may inquire personally or direct an investigation. It is **mandatory where the accused resides beyond the Magistrate's jurisdiction** (*Vijay Dhanuka v. Najima Mamtaj*, 2014). No investigation is directed if the offence is exclusively triable by a Court of Session.
- **s.226** (CrPC 203): **dismissal of complaint** with brief reasons if there is no sufficient ground.

Q13. Commencement of proceedings before Magistrates (ss. 227–233)

- **s.227** (CrPC 204): **issue of process**, a summons (summons case) or warrant (warrant case). The list of prosecution witnesses must be filed first. Process may also be issued electronically.
- **s.228** (CrPC 205): the Magistrate may **dispense with personal attendance** of the accused and allow appearance by pleader.
- **s.229** (CrPC 206): special summons in **petty offences**. The accused may plead guilty by post or messenger and pay the fine (fine up to ₹5,000).
- **s.230** (CrPC 207): **supply of police report and documents** to the accused **free of cost within 14 days** of appearance (may be electronic).
- **s.231** (CrPC 208): supply of copies in other cases triable by the Court of Session.
- **s.232** (CrPC 209): **commitment** to the Court of Session when the offence is exclusively triable by it, to be completed within **90 days** (extendable to 180 days).
- **s.233** (CrPC 210): if a complaint case and a police investigation on the same offence are both pending, the Magistrate **stays the complaint case** and calls for the police report. If cognizance is taken on the police report, both are tried together as if both arose from the police report.

MODULE 3 — INFORMATION TO POLICE AND POWERS OF INVESTIGATION

Q14. FIR — meaning, procedure (s.173) and evidentiary value. *(Very important)*

Meaning: the information about a **cognizable offence** first given to the officer in charge of a police station, which sets the criminal law in motion. "FIR" is not defined but is drawn from s.173 (CrPC 154).

Procedure (s.173)

1. Given **orally or by electronic communication**. Oral information is reduced to writing, read over to the informant and signed. **e-FIR** must be signed within **3 days**.
2. **Zero FIR**: it can be lodged at **any police station irrespective of jurisdiction**, which then transfers it.
3. A **free copy** goes to the informant or victim.
4. For offences against women (BNS ss. 64–79, 124, etc.), it is recorded by a **woman officer**. For a disabled victim, it is recorded at their residence with videography.
5. **Preliminary enquiry** (s.173(3)): for offences punishable with **3 to 7 years**, it can be done with permission of a DSP rank officer, to be completed within **14 days**.
6. **Remedy if police refuse**: send the information to the **Superintendent of Police** (s.173(4)). Then apply to the **Magistrate under s.175(3)** with an affidavit.

Registration mandatory: *Lalita Kumari v. Govt. of U.P.* (2014, Constitution Bench). Registration of an FIR is **mandatory** if the information discloses a cognizable offence. A preliminary inquiry is allowed only in specified categories (matrimonial, commercial, medical negligence, corruption, delay cases).

Evidentiary value of FIR

- An FIR is **not substantive evidence**.
- It can be used to **corroborate** the informant (BSA s.160, IEA 157) or to **contradict** them (BSA s.148, IEA 145).
- If the informant is the accused, any confession in it is inadmissible (BSA s.23). The non-confessional part may be used, as may facts discovered under the proviso to s.23(2) (*Aghnoo Nagesia v. State of Bihar*, 1966).
- It can be a **dying declaration** under BSA s.26 if the informant dies.
- It can be relevant as **res gestae** (BSA s.4) or as **conduct** (BSA s.6).
- **Delay** in lodging an FIR is not fatal by itself if it is explained (*State of H.P. v. Gian Chand*, 2001). Unexplained delay may suggest embellishment.
- An FIR is not an encyclopaedia; it need not contain every detail (*Superintendent of Police, CBI v. Tapan Kumar Singh*, 2003).

Statements made to a police officer during investigation

- s.180 (CrPC 161): police examine witnesses orally and may record by audio-video.
- **s.181 (CrPC 162)**: such statements are **not signed** and **cannot be used for any purpose**, except by the **accused to contradict** the witness (and by the prosecution with the court's permission). Exceptions: dying declarations and BSA s.23(2) proviso discoveries.

Q15. Information in non-cognizable cases (s.174, CrPC 155)

- The police officer enters the substance in a register and refers the informant to the Magistrate.
- Police cannot investigate a non-cognizable case **without the Magistrate's order**.
- If a case involves two or more offences and at least one is cognizable, the whole case is treated as cognizable.
- BNSS adds that a daily diary report is sent to the Magistrate fortnightly.

Q16. Police power to investigate (ss. 175–178)

- **s.175(1)** (CrPC 156): the officer in charge may investigate any **cognizable** case without the Magistrate's order. The SP may direct a DSP to investigate when the nature or gravity of the offence requires it.
- **s.175(3)**: a Magistrate may **order investigation** after considering an application **supported by an affidavit** and the police officer's submissions (*Priyanka Srivastava v. State of U.P.*, 2015).
- **s.175(4)** *(new)*: a complaint against a **public servant** for acts in official duty needs a report from the superior officer and the public servant's version.
- **s.176** (CrPC 157): procedure for investigation. A report is sent to the Magistrate. In rape cases the victim's statement is recorded at her residence by a woman officer and can be audio-video recorded. A **forensic team must visit the scene** for offences punishable with **7 years or more**.
- **s.177**: report submitted through a superior officer.
- **s.178** (CrPC 159): the Magistrate, on receiving the report, may direct investigation or hold a preliminary inquiry.

Q17. Interrogation powers of police (ss. 179–193)

- **s.179** (CrPC 160): power to require **attendance of witnesses**. **Exemption**: males under 15 or above **60**, women, mentally or physically disabled persons, and persons with acute illness are questioned **at their residence**.
- **s.180** (CrPC 161): oral examination. The witness must answer truly, except questions that tend to incriminate. A statement of a woman victim of sexual offences is recorded by a woman officer.
- **s.181** (CrPC 162): bar on using statements.
- **s.182** (CrPC 163): **no inducement, threat or promise** to be offered.
- **s.183** (CrPC 164): recording of confessions and statements (see Q24).
- **s.184** (CrPC 164A): medical examination of a rape victim within 24 hours of information. The report goes to the IO and is forwarded within **7 days**.
- ss.185–186: search (see Q23). s.187: remand (Q25). ss.188–191: release when evidence is deficient (s.189) and sending cases to the Magistrate when evidence is sufficient (s.190). s.192: diary (Q26). s.193: police report (Q27).
- **Constitutional limits**: Art. 20(3) (*Nandini Satpathy*, 1978). There is no right to remain completely silent before police on all questions, but the person can refuse incriminating answers. *Selvi* (2010) bars forced narco-analysis. *D.K. Basu* (1997) bars custodial torture.

Q18. Arrest without warrant (s.35, CrPC 41) and with warrant

Arrest without warrant (s.35): any police officer may arrest without an order or warrant a person:

a. who commits a cognizable offence **in their presence**;
b. against whom there is a reasonable complaint or credible information of a cognizable offence punishable with **up to 7 years**, if the officer has reason to

believe the person committed it **and** arrest is **necessary**. Necessary means: to prevent further offences, for proper investigation, to prevent tampering with evidence, to prevent inducement or threat to witnesses, or to ensure presence in court. **Reasons must be recorded** for arresting and for not arresting;

c. against whom credible information of an offence punishable with **more than 7 years or death** exists; (d)–(i): proclaimed offender; possession of stolen property; obstructing police or escaping from custody; deserter from the armed forces; offence committed abroad; released convict breaching rules; requisition from another officer.

- **s.35(3)–(6)**: a **notice of appearance** (old s.41A) is issued where arrest is not required. If the person complies, they are not arrested.
- **s.35(7)** *(new)*: **no arrest without prior permission of an officer not below DSP rank** for offences punishable with **less than 3 years** if the person is **infirm or above 60 years**.
- *Arnesh Kumar v. State of Bihar* (2014): no automatic arrest in offences punishable with up to 7 years. There is a checklist, and the Magistrate must not authorise detention mechanically.
- *Joginder Kumar v. State of U.P.* (1994): arrest must be justified; the power to arrest is not the same as the justification for exercising it.

Other arrests without warrant

- s.39 (CrPC 42): refusal to give name and residence in a non-cognizable offence.
- s.40 (CrPC 43): **arrest by a private person** of anyone committing a non-bailable and cognizable offence in their presence, or a proclaimed offender. The person must be handed over to police within **6 hours**.
- s.41 (CrPC 44): arrest by a Magistrate.
- s.42 (CrPC 45): protection of armed forces members (Government consent needed).

Execution rules

- **s.43** (CrPC 46): how arrest is made. There is touch or confinement unless the person submits. A woman is arrested only by a woman officer, and a woman cannot be arrested **after sunset or before sunrise** except in exceptional circumstances with prior permission of a JMFC. **Handcuffs** may be used (s.43(3)) on habitual or repeat offenders, escapees, and persons accused of organised crime, terrorism, drug offences, murder, rape, etc.
- s.44 (CrPC 47): search of a place entered by the person to be arrested.
- s.45 (CrPC 48): pursuit into other jurisdictions.
- s.46 (CrPC 49): **no more restraint than necessary**.
- **s.62** (CrPC 60A): arrest only in accordance with BNSS or other law.

Arrest with warrant (ss. 72–83)

- s.72 (CrPC 70): form of warrant. It is in writing, signed, sealed, and remains in force until cancelled or executed.
- s.73 (CrPC 71): the court may direct **security to be taken** (bailable warrant).

- ss.74–75: to whom directed. The CJM may direct to any person, including for an escaped convict or proclaimed offender.
- s.76: warrant directed to a police officer.
- s.77 (CrPC 75): substance of the warrant notified. s.78 (CrPC 76): person arrested is produced without delay, within **24 hours**.
- ss.79–83: where a warrant may be executed (anywhere in India); execution outside jurisdiction; procedure on arrest; endorsement by the local Magistrate.

Proclamation and attachment (ss. 84–93)

- **s.84** (CrPC 82): **proclamation** for a person absconding, requiring appearance within **at least 30 days**. A person who fails to appear when accused of offences punishable with 10 years or more, life or death may be declared a **proclaimed offender**.
- **s.85** (CrPC 83): **attachment of property** of the proclaimed person.
- **s.86** *(new)*: identification and attachment of property of a proclaimed person, including in a **contracting state abroad**.
- ss.87–89 (CrPC 84–86): claims and objections to attachment; release, sale and restoration of attached property.
- ss.90–93: other rules (issue of warrant in lieu of summons, power to take bond).

Q19. Police to report apprehensions; discharge; pursue and retake (ss. 59–61)

- **s.59** (CrPC 58): officers in charge of police stations report to the DM or SDM **all persons arrested without warrant**, whether admitted to bail or not.
- **s.60** (CrPC 59): a person arrested by police is discharged **only on their own bond, on bail, or under the special order of a Magistrate**.
- **s.61** (CrPC 60): if an arrested person escapes, the person in custody may **immediately pursue and re-arrest** them anywhere in India.

Q20. Rights of arrested persons (ss. 47–58, 77–78, 340–341; Art. 22). *(Very important)*

1. **Right to know the grounds of arrest** (s.47; Art. 22(1)). *Pankaj Bansal v. UOI* (2023) and *Prabir Purkayastha v. State (NCT of Delhi)* (2024): grounds must be supplied **in writing**.
2. **Right to be informed of the right to bail** in bailable offences (s.47(2)).
3. **Right to have a relative or friend informed** of the arrest and place of detention (s.48). This is entered in a book. The Magistrate verifies compliance.
4. **Arrest memo** signed by a witness; officer to bear clear identification (s.36).
5. **Right to meet an advocate** of choice during interrogation, though not throughout (s.38; Art. 22(1)).
6. **Right to be produced before a Magistrate within 24 hours**, excluding journey time (ss.57, 58; Art. 22(2)).
7. **Right to medical examination** (s.53). A medical examination is done soon after arrest by a medical officer. A woman is examined by a female medical officer.

8. **Search with decency** (s.49). A woman is searched by a woman.
9. **Health and safety** of the accused is the duty of the custodian (s.56).
10. **Designated police officer and control room** displaying details of arrested persons (s.37).
11. **Right to free legal aid** (s.341; Art. 39A; *Khatri v. State of Bihar*, 1981). The Magistrate must inform the accused of this right.
12. **Right to be defended by a pleader of choice** (s.340).
13. **Right to a speedy trial** (Art. 21; *Hussainara Khatoon*).
14. **Protection from torture and handcuffing** except under law (*Prem Shankar Shukla v. Delhi Admin.*, 1980; *Sunil Batra*).
15. **Right to compensation** for illegal detention (*Rudul Sah v. State of Bihar*, 1983; *Nilabati Behera v. State of Orissa*, 1993).
16. **Right against self-incrimination** (Art. 20(3)).

D.K. Basu guidelines (1997), now largely codified: identification of police; arrest memo; informing a relative; medical examination every 48 hours; copies to the Magistrate; access to a lawyer; police control room.

Q21. Preventive powers of the police (ss. 168–172)

- **s.168** (CrPC 149): police to **interpose to prevent** any cognizable offence.
- **s.169** (CrPC 150): information of a design to commit a cognizable offence is passed to the superior officer.
- **s.170** (CrPC 151): **arrest to prevent** a cognizable offence if it cannot otherwise be prevented. Detention must not exceed **24 hours** unless authorised by law.
- **s.171** (CrPC 152): prevention of **injury to public property**.
- **s.172** *(new)*: **persons bound to conform to lawful directions of police**. Police may detain or remove a person resisting directions. In petty cases the person is released within 24 hours.

Q22. Search and seizure (ss. 49, 96–110, 185–186)

- **s.49** (CrPC 51): search of an arrested person. A receipt for seized articles is given. A woman is searched by a woman with decency.
- **Summons to produce (s.94)**, including **electronic communication and devices**.
- **Search warrants (ss. 96–99)** (CrPC 93–98): a court may issue a search warrant if the person will not produce a thing, or for a general search. s.97 covers places with stolen property or forged documents. s.98 covers forfeiture of publications. s.99 covers search for wrongfully confined persons.
- **s.100–103** (CrPC 99–102): direction of warrant; **persons in charge of a closed place** to allow search; **two respectable independent local witnesses** must be present (s.103(4), CrPC 100(4)). A list of seized things is signed by the witnesses. **Search and seizure must be recorded by audio-video**, preferably on a mobile phone (s.105, *new*). Police may seize property suspected to be stolen (s.106, CrPC 102).
- **s.107** *(new)*: attachment, forfeiture or restoration of **proceeds of crime** by Magistrate's order.

- **s.185** (CrPC 165): **search by police officer** without warrant during investigation. Reasons must be recorded in writing, and copies sent to the nearest Magistrate within **48 hours**. Recording by audio-video.
- **s.186** (CrPC 166): when an officer in charge may require another to issue a search warrant (beyond jurisdiction).
- Effect of an illegal search: evidence is **not inadmissible** merely because the search was illegal, but the court weighs it with caution (*Radha Kishan v. State of U.P.*, 1963; *State of Punjab v. Baldev Singh*, 1999 for NDPS).

Q23. Recording of confessions and statements (s.183, CrPC 164)

- Any **Judicial Magistrate** of the district where information is recorded (whether having jurisdiction or not) may record a confession or statement during investigation or before trial. It may be recorded by audio-video, in the presence of the advocate of the accused.
- **Safeguards for confessions**:
  - The Magistrate must explain that the accused **is not bound to confess** and that it may be used as evidence.
  - The Magistrate must have **reason to believe it is voluntary**.
  - Time for reflection is given (*Sarwan Singh v. State of Punjab*, 1957, suggested at least 24 hours).
  - The person is **not remanded to police custody** if they decline.
  - There is a certificate and memorandum at the foot of the record.
- Statements of rape and sexual offence victims are recorded **by a woman Magistrate** as far as practicable, and with the help of an interpreter or special educator for disabled persons. In offences against women, the victim's statement is to be recorded by the Magistrate as soon as the offence is brought to the notice of the police.
- **Value**: a s.183 confession is admissible against the maker (BSA s.23(2) exception) and is **substantive evidence** if voluntary and true. A statement of a witness is not substantive; it is used to corroborate or contradict.

Q24. Special remand order — detention when investigation cannot be completed in 24 hours (s.187, CrPC 167)

- If investigation cannot be completed in 24 hours, the officer transmits **diary entries** and produces the accused before the nearest JM.
- **Custody limit**: the Magistrate may authorise **police custody up to 15 days**, **in whole or in parts, at any time during the first 40 days** (for offences with up to 10 years) **or 60 days** (for offences with death, life or 10 years or more) of the total period. This is a *major change* from *CBI v. Anupam J. Kulkarni* (1992), which allowed police custody only in the first 15 days.
- **Total detention**: **90 days** (death, life, or not less than 10 years) or **60 days** (other offences). If the chargesheet is not filed within this period, the accused gets **default / statutory bail** (s.187(3)).
  - *Sanjay Dutt v. State* (1994); *Rakesh Kumar Paul v. State of Assam* (2017);

    - *M. Ravindran v. Intelligence Officer DRI* (2021): the right is indefeasible once claimed before the chargesheet is filed;
    - *Ritu Chhabaria v. UOI* (2023): an incomplete chargesheet cannot defeat default bail.
- An Executive Magistrate may authorise up to 7 days.
- Detention may be authorised by **video linkage**; the accused must be produced physically at least once.

Q25. Police diary (s.192, CrPC 172)

- Every officer investigating must enter **day-by-day proceedings** in a case diary: time the information was received, time of beginning and closing, places visited, circumstances ascertained. Statements of witnesses are included. The diary is **duly paginated** in volume form.
- The **criminal court** may call for the diary, but only to **aid it in the inquiry or trial**, **not as evidence**.
- The **accused cannot call for it** or see it as of right. They can do so only if it is used by the police officer to refresh memory or by the court to contradict the officer (then BSA ss.162, 148 apply).
- *Shamshul Kanwar v. State of U.P.* (1995); *Mukund Lal v. UOI* (1989).

Q26. Police report / chargesheet (s.193, CrPC 173)

- Investigation is to be completed **without unnecessary delay**. For offences under BNS ss.64–71 (rape) and POCSO, it is to be completed within **2 months**.
- The officer forwards the **report to the Magistrate**, including electronically. It contains names of parties, nature of information, names of persons acquainted with the facts, whether an offence was committed and by whom, whether the accused is arrested, released on bond or in custody, the medical report (for rape cases), and the **sequence of custody of electronic devices**.
- The informant or victim is informed of the **progress of investigation within 90 days** (s.193(3)(ii), *new*).
- **Further investigation** is allowed (s.193(9)). During trial it needs the court's permission and must be completed within **90 days** (extendable).
- A **closure report** gives the informant the right of notice and hearing (*Bhagwant Singh v. Commissioner of Police*, 1985). The Magistrate may (i) accept it, (ii) direct further investigation, or (iii) take cognizance on the protest petition.
- *Vinubhai Haribhai Malaviya v. State of Gujarat* (2019): the Magistrate can order further investigation even after cognizance, before trial.

Q27. Inquest proceedings (ss. 194–196)

- **s.194** (CrPC 174): police to inquire and report on **suicide, homicide, death by animal or machinery, or suspicious death**. The officer gives intimation to the Executive Magistrate and, in the presence of **two or more respectable inhabitants**, makes the investigation and report (apparent cause of death, wounds and so on). The report must be forwarded within **24 hours**. **Post-mortem** is

mandatory for the suicide of a woman within **7 years of marriage**, suspicious deaths of women, or on a relative's request.
- **s.195** (CrPC 175): power to summon persons.
- **s.196** (CrPC 176): **inquiry by a Magistrate** into cause of death. It is mandatory for **death or disappearance in police custody**, rape in custody, and deaths of women within 7 years of marriage. **Judicial Magistrate** inquiry is held in custodial deaths. The body may be exhumed.
- **Scope**: an inquest is only to find the **apparent cause of death**, not who is responsible (*Pedda Narayana v. State of A.P.*, 1975). The inquest report is not substantive evidence.

MODULE 4 — BAIL, SECURITY AND MAINTENANCE

Q28. Bail — meaning, kinds and provisions (ss. 478–496). *(Very important)*

Meaning: s.2(1)(b) defines bail as the release of an accused or suspected person from custody on conditions, on executing a bond or bail bond. Principle: **"Bail is the rule, jail is the exception"** (*State of Rajasthan v. Balchand*, 1977, Krishna Iyer J.). Based on Art. 21 and the presumption of innocence.

A. Bail in bailable offences (s.478, CrPC 436)

- Bail is a **matter of right**. The police officer or court **must** release the accused.
- An **indigent person** (unable to give bail within **one week**) is presumed indigent and released on a personal bond.
- If the accused fails to comply with bail conditions, bail may be refused next time.

B. Maximum period of undertrial detention (s.479, CrPC 436A)

- An undertrial who has served **half** of the maximum sentence is released on bond.
- A **first-time offender** is released after **one-third**.
- This does not apply to offences punishable with death or life imprisonment, or where multiple cases are pending.
- The jail superintendent must apply to the court.

C. Bail in non-bailable offences (s.480, CrPC 437)

- It is **discretionary**.
- A Magistrate **shall not** release a person if there are **reasonable grounds to believe** they committed an offence punishable with **death or life imprisonment**, or if they were previously convicted of such or of a 7+ year offence (twice). **Exceptions**: a child, a **woman**, or a **sick or infirm** person.
- **Conditions** for offences of 7 years or more include: attending as required, not committing a similar offence, and not tampering with evidence.
- If trial is not concluded within **60 days** from the first date fixed for evidence, an accused in custody is to be released (Magistrate-triable cases).

D. Anticipatory bail (s.482, CrPC 438)

- A person **apprehending arrest** for a non-bailable offence may apply to the **High Court or Court of Session**.
- Conditions may include: availability for interrogation, not influencing witnesses, not leaving India without permission.
- **Not available** for BNS s.65 and s.70(2) (rape or gang rape of a girl under 12 or 18).
- *Gurbaksh Singh Sibbia v. State of Punjab* (1980): wide discretion; no blanket conditions should be read in.
- *Sushila Aggarwal v. State (NCT of Delhi)* (2020, Constitution Bench): anticipatory bail is **not limited in time** ordinarily and continues till the end of trial.
- *Siddharam Satlingappa Mhetre v. State of Maharashtra* (2011).

E. Special powers of High Court / Sessions Court (s.483, CrPC 439)

- These courts may grant bail in any case and set aside or modify conditions.
- **Notice to the PP** is required for offences triable exclusively by Sessions or punishable with life.
- **Hearing the informant** is required for rape of a minor.
- **Cancellation of bail** under s.483(3) is possible if the person misuses liberty, tampers with evidence or threatens witnesses (*Dolat Ram v. State of Haryana*, 1995). Grounds for cancellation differ from grounds for rejection.

F. Other provisions

- s.481 (CrPC 437A): bail bond to appear before the appellate court.
- s.484: amount of bond. s.485 (CrPC 441): bond of accused and sureties. s.486: declaration by sureties.
- s.487: discharge from custody.
- s.489: power to order sufficient bail when the first bail was insufficient.
- s.490: deposit instead of bond. s.491: forfeiture of bond (CrPC 446). s.493: appeal from orders.
- s.494: power to direct levy of the amount.

Factors for bail: nature and gravity of the accusation; severity of punishment; character of evidence; chance of absconding; chance of tampering with evidence; criminal antecedents; reasonable apprehension of witness intimidation (*Prahlad Singh Bhati v. NCT Delhi*, 2001; *Prasanta Kumar Sarkar v. Ashis Chatterjee*, 2010).

Satender Kumar Antil v. CBI (2022): guidelines on bail; categorises offences; no need to arrest if not arrested during investigation; bail applications to be decided within 2 weeks.

Default bail: see Q24.

Q29. Security for keeping peace and good behaviour (ss. 125–143, CrPC 106–124)

These are **preventive**, not punitive, provisions.

- **s.125** (CrPC 106): **on conviction** for offences involving breach of peace, criminal intimidation, etc., the court may order a **bond for keeping the peace for up to 3 years**.
- **s.126** (CrPC 107): **in other cases**, an Executive Magistrate who receives information that a person is likely to commit a breach of peace may require them to show cause why they should not execute a bond for keeping the peace for **up to 1 year**.
- **s.127** (CrPC 108): good behaviour from persons **disseminating certain matters** (e.g. promoting enmity, defamation of judges, obscene matter). Up to 1 year.
- **s.128** (CrPC 109): good behaviour from **suspected persons** who conceal their presence to commit cognizable offences. Up to 1 year.
- **s.129** (CrPC 110): **habitual offenders**, such as habitual robbers, house-breakers, thieves, receivers of stolen property, and those so desperate and dangerous as to be hazardous. Up to **3 years**.
- **Procedure (ss. 130–143)**:
  - s.130: the Magistrate makes a written **order** setting out the substance of the information.
  - s.131: procedure in respect of a person present in court.
  - s.132: summons or warrant.
  - s.135: **inquiry into truth of the information**. Interim bond is possible.
  - s.136: order to give security. s.137: discharge.
  - s.138: commencement of period.
  - s.140: power to reject sureties.
  - s.141: imprisonment in default of security.
  - s.142: power to release persons.
  - s.143: security for unexpired period.
- *Madhu Limaye v. SDM, Monghyr* (1970): these are preventive powers and must be exercised strictly.

Q30. Maintenance of public order: unlawful assemblies (ss. 148–151, CrPC 129–132)

- **s.148**: an Executive Magistrate or officer in charge of a police station may **command an unlawful assembly** (or an assembly of 5 or more likely to cause a disturbance) to disperse. If it does not disperse, they may use **civil force**, and arrest and confine the members.
- **s.149**: if necessary, the Executive Magistrate of the highest rank present may cause it to be dispersed by the **armed forces**, using as little force and doing as little injury as possible.
- **s.150**: when no Executive Magistrate can be contacted, a commissioned or gazetted **officer of the armed forces** may disperse it.
- **s.151**: **protection against prosecution**. No prosecution of these persons for acts done in good faith without Government sanction.
- *Ramlila Maidan Incident v. Home Secretary* (2012): use of force must be reasonable and proportionate.

Q31. Public nuisance (ss. 152–163, CrPC 133–144)

- **s.152** (CrPC 133): **conditional order for removal of nuisance**. A DM, SDM or Executive Magistrate, on a police report or other information, may order removal of an unlawful obstruction or nuisance on a public way, conduct of a trade injurious to health, dangerous buildings, unfenced tanks or wells, dangerous animals, etc.
- ss.153–159: service of the order; the person shall obey or show cause; claim of a public right (s.157, inquiry and stay of proceedings); evidence; local investigation; procedure when the order is made absolute.
- s.160: consequences of disobedience (BNS s.223). s.161: **injunction pending inquiry**. s.162: order to prevent repetition.
- **s.163** (CrPC 144): **urgent cases of nuisance or apprehended danger**. The DM, SDM or Executive Magistrate may issue a written order directing a person to abstain from an act, or to take order with property, to prevent obstruction, annoyance, injury, danger to human life, health or safety, or a disturbance of public tranquillity, a riot or an affray. It is valid for **2 months**. The State Government may extend it up to **6 months**. It may be made **ex parte** in emergencies.
    - *Madhu Limaye v. SDM, Monghyr* (1970): upheld as a reasonable restriction.
    - *Anuradha Bhasin v. UOI* (2020): the power cannot be used to suppress legitimate expression; it must be proportionate and the order must be reasoned and published.
    - *Municipal Council, Ratlam v. Vardichan* (1980): s.133 obligates municipalities to remove public nuisances; financial inability is no excuse.

Q32. Disputes as to immovable property (ss. 164–167, CrPC 145–148)

- **s.164** (CrPC 145): when an Executive Magistrate is satisfied that a dispute about **land or water** is likely to cause a **breach of the peace**, they order the parties to attend and put in written statements about **actual possession**. They decide **who was in possession on the date of the order**, regardless of title. A person wrongfully dispossessed within **2 months** before the police report is deemed to be in possession. The order stands until eviction in due course of law (a civil court decides title).
- **s.165** (CrPC 146): power to **attach** the subject of the dispute in emergency or where possession cannot be determined, and appoint a receiver.
- **s.166** (CrPC 147): dispute about the **right of use** of land or water (easements).
- **s.167** (CrPC 148): local inquiry.
- These provisions are **quasi-civil** and aimed at maintaining peace. They do not decide title (*R.H. Bhutani v. Mani J. Desai*, 1968).

Q33. Maintenance of wives, children and parents (ss. 144–147, CrPC 125–128). *(Very important)*

Object: social justice. A **summary remedy to prevent vagrancy and destitution** (*Chaturbhuj v. Sita Bai*, 2008; *Bhuwan Mohan Singh v. Meena*, 2014). It is secular and applies to all religions.

Who can claim (s.144(1)): a person **having sufficient means** who neglects or refuses to maintain:

a. their **wife** unable to maintain herself. “Wife” includes a **divorced wife who has not remarried**;
b. a **legitimate or illegitimate minor child**, whether married or not;
c. a legitimate or illegitimate **major child** (other than a married daughter) unable to maintain itself because of physical or mental abnormality or injury;
d. their **father or mother** unable to maintain themselves.

A **married minor daughter’s** maintenance falls on the father until marriage, if her husband lacks means.

- **Amount**: a **monthly allowance** as the Magistrate thinks fit. There is **no upper limit** (since the 2001 amendment). **Interim maintenance** and expenses of proceedings are possible, with the application to be disposed of within **60 days** of notice.
- **Wife not entitled**: if she is **living in adultery**, refuses to live with her husband **without sufficient reason**, or they live separately by **mutual consent** (s.144(4)). A husband’s second marriage or keeping a mistress is just ground for the wife to live separately.
- **Who decides**: a JMFC. **Jurisdiction (s.145)**: where the respondent is, where they or their wife reside, where they last resided with the wife, or where the person claiming resides. Evidence is taken in the presence of the respondent. An ex parte order is possible.
- **Alteration (s.146, CrPC 127)**: on change of circumstances; cancellation if the divorced wife remarries or has received the customary sum.
- **Enforcement (s.147, CrPC 128)**: a warrant to **levy as fine**; imprisonment up to **1 month for each month’s default** if unpaid. The application must be made **within 1 year** of the amount falling due.

Cases

- *Mohd. Ahmed Khan v. Shah Bano Begum* (1985): s.125 applies to Muslim divorced women. Personal law cannot override it.
- *Danial Latifi v. UOI* (2001): upheld the Muslim Women (Protection of Rights on Divorce) Act, 1986. The husband must make a **reasonable and fair provision** for the future, extending beyond iddat, which must be paid within the iddat period.
- *Mohd. Abdul Samad v. State of Telangana* (2024): a divorced Muslim woman **can also claim under s.125 CrPC** (s.144 BNSS). The 1986 Act does not exclude it.
- *Chanmuniya v. Virendra Kumar Singh Kushwaha* (2011): “wife” is interpreted broadly; a long cohabitation creates a presumption.
- *Badshah v. Urmila Badshah Godse* (2014): a second wife married without knowledge of the first marriage was granted maintenance.
- *Rajnesh v. Neha* (2020): guidelines for maintenance. Affidavit of assets is required. Maintenance runs from the **date of application**. Overlapping claims are adjusted.
- *Vijay Kumar Prasad v. State of Bihar* (2004): proceedings are civil in nature.

Q34. Maintenance under the Muslim Women (Protection of Rights on Divorce) Act, 1986

- **s.3**: a divorced Muslim woman is entitled to:
  a. a **reasonable and fair provision and maintenance** to be made and paid within the **iddat period** by the former husband;
  b. maintenance for children for 2 years from birth;
  c. **mahr / dower**;
  d. properties given to her. If not paid, the Magistrate orders payment within 1 month.
- **s.4**: if she has not remarried and cannot maintain herself after iddat, the Magistrate may order **relatives who would inherit her property** to pay. If none can, the **State Wakf Board** pays.
- **s.5**: option to be governed by s.125 CrPC by a joint affidavit.
- **Interpretation**: *Danial Latifi* (2001) held that "provision" covers her entire future life, and the Act is constitutional. *Shabana Bano v. Imran Khan* (2009) held that the Family Court can grant s.125 maintenance even after iddat. *Mohd. Abdul Samad* (2024) held both remedies are available.

MODULE 5 — CHARGE, TRIAL AND RELATED PROCEDURES

Q35. Concept of fair trial — presumption of innocence, right to silence, speedy trial

A fair trial is the **heart of criminal jurisprudence** (Art. 21). Its ingredients:

1. **Presumption of innocence**. The burden is on the prosecution; proof is required **beyond reasonable doubt** (*Woolmington v. DPP*, 1935, the "golden thread"; *Kali Ram v. State of H.P.*, 1973). Exceptions exist where statutes reverse the burden (e.g. NDPS ss.35, 54; POCSO s.29; BSA ss.117–120 presumptions).
2. **Right to silence / against self-incrimination**. Art. 20(3); BNSS s.351(3) (no oath for the accused); s.353 (accused a competent witness only on their own written request; no adverse comment on failure to testify). *Nandini Satpathy* (1978); *Selvi* (2010).
3. **Speedy trial**. *Hussainara Khatoon* (1979); *Abdul Rehman Antulay v. R.S. Nayak* (1992), which held no fixed time limit applies but delay is a factor; *P. Ramachandra Rao v. State of Karnataka* (2002). BNSS sets many timelines.
4. **Independent, impartial and competent judge**; open court trial (s.366, CrPC 327). In-camera trials are held for rape cases.
5. **Right to counsel and legal aid** (ss.340–341).
6. **Trial in presence of the accused** (s.308), and knowledge of the accusation (charge).
7. **Right to cross-examine** and to lead defence evidence.
8. **Disclosure of documents** (s.230).

9. **Protection against double jeopardy** (s.337).
10. **Fair investigation** (*Babubhai v. State of Gujarat*, 2010).

Zahira Habibullah Sheikh v. State of Gujarat (Best Bakery case, 2004): a fair trial means one before an impartial judge, a fair prosecutor and an atmosphere of judicial calm. Denial of a fair trial is injustice to the accused, the victim and society.

Q36. Limitation for taking cognizance (ss. 513–519, CrPC 467–473)

- **s.514** (CrPC 468): **bar to taking cognizance after the limitation period**:
  - **6 months**: offence punishable with fine only;
  - **1 year**: imprisonment up to 1 year;
  - **3 years**: imprisonment of more than 1 year but up to 3 years.
  - No limitation for offences punishable with more than 3 years.
- **s.515** (CrPC 469): **commencement** is the date of the offence, or the date of knowledge to the aggrieved person or police, or, if the offender is unknown, the date their identity is known.
- **s.516** (CrPC 470): exclusion of time spent in other prosecutions in good faith, under stay, notice periods, sanction periods, and so on.
- s.517: exclusion of the date on which the court is closed.
- **s.518** (CrPC 472): **continuing offence**. A fresh period begins every moment the offence continues.
- **s.519** (CrPC 473): the court may take cognizance after the limitation period if satisfied that the **delay is properly explained** or it is necessary in the **interests of justice**.
- *Sarah Mathew v. Institute of Cardio Vascular Diseases* (2014, Constitution Bench): for computing limitation, the relevant date is the **date of filing the complaint / initiating prosecution**, not the date of cognizance.
- *Vanka Radhamanohari v. Vanka Venkata Reddy* (1993): s.473 is to be read liberally in matrimonial offences.

Q37. Charge — contents, form and alteration (ss. 234–240, 247). *(Important)*

Meaning: the formal accusation in writing that tells the accused **precisely and concisely** the offence they are charged with. Object: to give the accused **notice** so they can prepare a defence. It is not needed in summons cases; there only the particulars are explained (s.274).

Contents (s.234, CrPC 211):

- states the **offence** charged;
- uses the specific **name** of the offence, if any, or a **definition** so the accused has notice;
- states the **law and section**;
- is written in the language of the court;

- is a statement that every legal condition required to constitute the offence is fulfilled;
- states **previous conviction** if it affects punishment.

Particulars (s.235, CrPC 212): **time, place and person** against whom, or the thing in respect of which, the offence was committed. In criminal breach of trust and misappropriation, the **gross sum** and dates between which it was committed may be specified, with the period not exceeding **one year**.

- **s.236** (CrPC 213): when the manner of commission must be stated, if the particulars do not give sufficient notice.
- **s.237** (CrPC 214): words in the charge are taken in the sense attached to them by law.
- **s.238** (CrPC 215): **effect of errors**. No error or omission is material unless the accused was **misled** and it caused a **failure of justice**.
- **s.239** (CrPC 216): the **court may alter or add to the charge at any time before judgment**. The charge is read and explained. If the alteration prejudices the accused, the court may direct a new trial or adjourn.
- **s.240** (CrPC 217): **recall of witnesses** when the charge is altered.
- **s.247** (CrPC 224): withdrawal of remaining charges on conviction on one of several charges.

Cases

- *Willie (William) Slaney v. State of M.P.* (1956): absence of a charge or an error in it is not fatal unless prejudice is caused. The test is **failure of justice**.
- *Main Pal v. State of Haryana* (2010): a conviction for a different offence than the one charged depends on prejudice.
- *Dalbir Singh v. State of U.P.* (2004).

Q38. Separate charge for distinct offences and exceptions — joinder of charges (ss. 241–246)

Basic rule (s.241, CrPC 218): for every **distinct offence** there must be a **separate charge**, and every charge must be **tried separately**. Object: to avoid prejudice and confusion. The Magistrate may try charges together if the accused applies in writing and it will not prejudice them.

Exceptions:

1. **s.242** (CrPC 219): **offences of the same kind within 12 months**, against the same or different persons, can be charged and tried together. BNSS allows **up to five** such offences (CrPC allowed three). “Same kind” means punishable with the same amount of punishment under the same section.
2. **s.243** (CrPC 220): offences committed in the **same transaction**. Also where the acts fall within two definitions of an offence, or several acts together constitute a different offence. Test of same transaction: **proximity of time, unity of place,**

unity or community of purpose, continuity of action (*State of A.P. v. Cheemalapati Ganeswara Rao*, 1963).

3. **s.244** (CrPC 221): **doubt about which offence** the facts constitute. The accused may be charged in the alternative and convicted of the offence proved even if not charged.
4. **s.245** (CrPC 222): when the offence proved is **included in the offence charged** (a **minor offence**), the accused may be convicted of it.
5. **s.246** (CrPC 223): **joint trial of persons**, including persons accused of the same offence in the same transaction, abettors, persons accused of offences in the same transaction, receivers of stolen property, and so on. *Essa @ Anjum Abdul Razak Memon v. State of Maharashtra* (2013).

Misjoinder of charges is curable under s.511 (CrPC 465) unless it caused a failure of justice (*Kadiri Kunhahammad v. State of Madras*, 1960).

Q39. Trial before a Court of Session (ss. 248–260). *(Very important)*

1. **s.248** (CrPC 225): the prosecution is conducted by a **Public Prosecutor**.
2. **s.249** (CrPC 226): **opening the case**. The PP describes the charge and the evidence.
3. **s.250** (CrPC 227): **discharge**. The accused may file a discharge application **within 60 days of commitment**. If the judge, after considering the record and documents and hearing both sides, finds **no sufficient ground**, the accused is discharged with reasons recorded. *Union of India v. Prafulla Kumar Samal* (1979): at this stage the test is a **prima facie case / grave suspicion**; there is no mini-trial. *Sajjan Kumar v. CBI* (2010).
4. **s.251** (CrPC 228): **framing of charge** within **60 days** of the first hearing on charge. If the offence is not exclusively triable by Sessions, the case may be transferred to the CJM. The charge is read and explained, and the accused is asked whether they plead guilty.
5. **s.252** (CrPC 229): **conviction on plea of guilty**. This is discretionary; the plea must be unequivocal.
6. **s.253** (CrPC 230): date for prosecution evidence.
7. **s.254** (CrPC 231): **prosecution evidence**: examination-in-chief, cross-examination, re-examination. It may be recorded by **audio-video electronic means**. Cross-examination may be deferred.
8. **s.351** (CrPC 313): **examination of the accused**. The accused explains the circumstances appearing against them. There is no oath.
9. **s.255** (CrPC 232): **acquittal** if there is no evidence that the accused committed the offence.
10. **s.256** (CrPC 233): **defence evidence**. The accused may enter on the defence, give a written statement, and summon witnesses.
11. **s.257** (CrPC 234): **arguments**. The PP sums up and the accused replies. The PP may reply on a point of law.
12. **s.258** (CrPC 235): **judgment within 30 days** of conclusion of arguments, extendable to **45 days**. If the accused is convicted, the court **hears them on**

sentence (*Bachan Singh v. State of Punjab*, 1980; *Santa Singh v. State of Punjab*, 1976, which held non-hearing on sentence vitiates the sentence).

13. **s.259** (CrPC 236): previous conviction.
14. **s.260** (CrPC 237): procedure in defamation cases against high functionaries.

Q40. Trial of warrant cases by Magistrates (ss. 261–273)

A. Cases instituted on a police report (ss. 261–266)

- **s.261** (CrPC 238): the Magistrate ensures compliance with s.230 (copies supplied).
- **s.262** (CrPC 239): **discharge**. A discharge application may be filed within **60 days** of supply of documents. The accused is discharged if the charge is **groundless**. The accused may be examined by audio-video.
- **s.263** (CrPC 240): **framing of charge** within **60 days** of the first hearing on charge.
- **s.264** (CrPC 241): conviction on plea of guilty.
- **s.265** (CrPC 242): evidence for the prosecution.
- **s.266** (CrPC 243): evidence for the defence.

B. Cases instituted otherwise than on a police report (ss. 267–270)

- **s.267** (CrPC 244): the Magistrate **hears the prosecution and takes evidence** first (pre-charge evidence).
- **s.268** (CrPC 245): discharge if no case is made out, or at any previous stage if the charge is groundless.
- **s.269** (CrPC 246): framing of charge. The accused is asked to plead. Witnesses are recalled for cross-examination.
- **s.270** (CrPC 247): defence evidence.

C. Conclusion of trial (ss. 271–273)

- **s.271** (CrPC 248): acquittal or conviction. The accused is heard on sentence. Probation may be considered.
- **s.272** (CrPC 249): **absence of complainant**. The Magistrate may discharge the accused if the offence is compoundable or non-cognizable and the charge has not been framed.
- **s.273** (CrPC 250): **compensation for accusation without reasonable cause**. The complainant or informant may be ordered to pay compensation.

Q41. Trial of summons cases (ss. 274–282, CrPC 251–259)

- **s.274**: **no formal charge**. The particulars of the offence are stated to the accused and they are asked whether they plead guilty. *New*: if the accusation is groundless, the Magistrate may release the accused after recording reasons (this has the effect of discharge).
- s.275: conviction on plea of guilty. s.276: conviction on plea of guilty in absence of the accused in petty cases.

- **s.277**: procedure when not convicted. The Magistrate hears the prosecution and the defence and takes evidence.
- **s.278**: acquittal or conviction.
- **s.279** (CrPC 256): **non-appearance or death of complainant**. The accused may be acquitted.
- s.280: **withdrawal of complaint** by the complainant before final order, with permission. This leads to acquittal.
- s.281 (CrPC 258): power to **stop proceedings** in cases not instituted on complaint. If stopped after evidence of the main witnesses, this leads to acquittal; otherwise it leads to release (discharge).
- **s.282** (CrPC 259): power to **convert a summons case into a warrant case** if the offence is punishable with more than 6 months and it is in the interests of justice.

Summons vs warrant case

Summons case	Warrant case
Offence punishable up to 2 years	Death, life, more than 2 years
No formal charge	Formal written charge
Accused may be acquitted for absence of complainant	Discharge only in limited cases
Simpler, quicker	More elaborate, with a discharge stage
Can be converted into a warrant case (s.282)	Cannot be converted into a summons case

Q42. Summary trials (ss. 283–288, CrPC 260–265)

- **s.283**: a **CJM or JMFC** (or a JM-II specially empowered, for offences with fine or up to 6 months) **shall try summarily**:
  - offences not punishable with death, life imprisonment or imprisonment exceeding **2 years**;
  - **theft, receiving or retaining stolen property** where value does **not exceed ₹20,000** (raised from ₹2,000);
  - house trespass, insult intending provocation, criminal intimidation, abetment of these, offences under the Cattle Trespass Act.
- **s.283(2)** *(new)*: the Magistrate may, after hearing the accused, try summarily offences punishable with up to **3 years**. **No appeal** lies against this decision to try summarily.
- If it appears during trial that summary trial is undesirable, the Magistrate recalls the witnesses and tries the case as a regular case.
- **s.284**: procedure is that for **summons cases**.
- **s.285**: **sentence** of imprisonment up to **3 months** only.
- **s.286**: summary trial by a Magistrate of the second class. s.287: **record** in prescribed form (serial number, date of offence, complainant, accused, offence, plea, finding, sentence). s.288: **judgment** with brief reasons where the accused does not plead guilty. Record and judgment in the language of the court.

Q43. Evidence in inquiries and trials; commissions (ss. 307–336)

- s.307: language of courts (determined by the State Government).
- **s.308** (CrPC 273): **evidence to be taken in presence of the accused or their pleader**. It may be recorded by **audio-video electronic means** at a designated place. In rape cases with a victim under 18, the court ensures she is **not confronted by the accused** while ensuring cross-examination.
- ss.309–312: record in summons cases (memorandum), warrant cases (narrative), Sessions (narrative / question-answer). Evidence may be recorded electronically.
- **s.313** (CrPC 280): **remarks on demeanour** of witnesses.
- **s.316** (CrPC 281): record of examination of the accused.
- s.317: interpretation of evidence to the accused.
- **Commissions (ss. 319–326)**: when attendance of a witness cannot be procured without unreasonable delay, expense or inconvenience, the court may **issue a commission** for examination (e.g. the President, Vice-President, Governors, and witnesses abroad).
- **Special rules (ss. 327–336)**:
  - s.329 (CrPC 293): **reports of Government scientific experts** (CFSL etc.) may be used as evidence without examining the expert.
  - s.330 (CrPC 294): **no formal proof of documents** whose genuineness is not disputed. Objection must be raised **within 30 days** of supply.
  - s.332 (CrPC 296): evidence of a formal character on **affidavit**.
  - s.335 (CrPC 299): **record of evidence in absence of the accused** (absconding).
  - **s.336** *(new)*: if a public servant, scientific expert, medical officer or investigating officer has been transferred, retired or died, their **successor-in-office** can depose on the document or report.

Q44. Plea bargaining (ss. 289–300, CrPC 265A–265L). *(Important)*

Meaning: pre-trial negotiation in which the accused **pleads guilty** in exchange for a **lesser sentence**. It was introduced in 2005 on the recommendations of the **154th Law Commission Report** and the **Malimath Committee**.

Applicability (s.289):

- Only for offences punishable with imprisonment **up to 7 years** where the case is pending trial.
- **Not available** for offences affecting the **socio-economic condition** of the country (notified), offences against a **woman**, or offences against a **child below 14**.
- Not available if the accused was previously convicted of the same offence.

Procedure:

1. **s.290**: the accused files the application **within 30 days of framing of charge** (*new time limit*), with an affidavit that it is voluntary. The court examines the accused **in camera** to ensure voluntariness.

2. **s.291**: guidelines for a **mutually satisfactory disposition**. The court gives time (**up to 60 days**) to the PP or complainant, the victim and the accused to work it out. This may include **compensation** to the victim.
3. **s.292**: report of the mutually satisfactory disposition, signed by all parties.
4. **s.293**: **disposal of the case**:
    - compensation to the victim;
    - release on **probation / admonition** if eligible;
    - if a **minimum punishment** is prescribed, **one-half** of the minimum;
    - otherwise **one-fourth** of the punishment provided.
    - *New*: for a **first-time offender**, **one-fourth** of the minimum and **one-sixth** of the maximum.
5. **s.294**: judgment in open court.
6. **s.295**: judgment is **final**. **No appeal**, except a writ petition under Arts. 32, 226, 227 or an SLP under Art. 136.
7. s.296: powers of the court.
8. **s.297**: **set-off** of detention period.
9. s.298: savings.
10. **s.299**: **statements made in a plea bargaining application cannot be used** for any other purpose.
11. s.300: non-application to juveniles.

Cases

- *State of U.P. v. Chandrika* (2000), before the 2005 amendment: plea bargaining was illegal; the court must decide on merits.
- *Kachhia Patel Shantilal Koderlal v. State of Gujarat* (1980): practice disapproved before the amendment.

Merits: reduces backlog, saves time and cost, gives the victim compensation, offers a lighter sentence. **Demerits**: risk of coercion; innocent persons may plead guilty; it may favour the wealthy.

Q45. Autrefois acquit and autrefois convict — double jeopardy (s.337, CrPC 300; Art. 20(2))

Maxim: *nemo debet bis vexari pro una et eadem causa* (no one should be vexed twice for the same cause).

s.337(1): a person once tried by a **court of competent jurisdiction** for an offence and **convicted or acquitted**, while the conviction or acquittal remains in force, **shall not be tried again for the same offence**, nor for any other offence on the same facts for which a different charge could have been made (s.243(1)) or for which they could have been convicted (s.244(2)).

Exceptions:

- s.337(2): a **distinct offence** for which a separate charge might have been made may be tried with the consent of the State Government.

- s.337(3): where the act caused **consequences** that, together with the act, constitute a different offence, and the consequences had not happened or were not known when first tried (e.g. hurt that later results in death).
- s.337(4): if the court that first tried the person was **not competent** to try the offence later charged.
- s.337(5): a person discharged under s.281 cannot be tried again without the consent of the court.
- Explanation: **dismissal of a complaint or discharge is not an acquittal**.

Art. 20(2) vs s.337

Art. 20(2)	s.337 BNSS
Protects only against **prosecution and punishment** (autrefois convict)	Covers both **acquittal and conviction**
Requires prosecution **and punishment**	Requires trial by a competent court
A fundamental right	A statutory right, wider in scope

Cases

- *Maqbool Hussain v. State of Bombay* (1953): proceedings before the Sea Customs authorities are not "prosecution", so a later criminal trial was not barred.
- *S.A. Venkataraman v. UOI* (1954): departmental inquiry followed by prosecution is not barred.
- *Thomas Dana v. State of Punjab* (1959): "same offence" means identical ingredients.
- *Kolla Veera Raghav Rao v. Gorantla Venkateswara Rao* (2011): conviction under NI Act s.138 bars a later trial under IPC s.420 on the **same facts**.
- *State of Bihar v. Murad Ali Khan* (1988): the test is identity of ingredients, not of facts.

Q46. Compounding of offences (s.359, CrPC 320)

- **Meaning**: the **victim forgiving the offender**, usually for compensation, which results in **acquittal**.
- **Table 1**: offences compoundable **without court permission** by the specified persons (e.g. simple hurt, wrongful restraint, criminal trespass, defamation, criminal intimidation).
- **Table 2**: offences compoundable **with permission of the court** (e.g. grievous hurt, theft, cheating, criminal breach of trust by a clerk or servant, some voluntary hurt cases).
- Offences not listed **cannot be compounded**.
- The composition **has the effect of acquittal**.
- Abetment and attempt are compoundable when the main offence is compoundable.
- A minor or person of unsound mind compounds through a guardian. A legal representative compounds if the person dies.
- Compounding is not permissible when the accused is **committed for trial** or convicted and an appeal is pending, without the court's leave. It is not allowed if the

accused is liable to enhanced punishment due to a previous conviction.

- **Quashing distinguished**: the High Court under s.528 can **quash even non-compoundable offences** on settlement in private, civil-flavoured disputes (matrimonial, commercial). It cannot do so in heinous offences (murder, rape, dacoity) or offences against society.
    - *Gian Singh v. State of Punjab* (2012);
    - *Narinder Singh v. State of Punjab* (2014);
    - *Parbatbhai Aahir v. State of Gujarat* (2017).

Q47. Withdrawal from prosecution (s.360, CrPC 321)

- The **Public Prosecutor or Assistant PP in charge** of the case may, **with the consent of the court**, withdraw from the prosecution **at any time before judgment**.
- **Effect**: before the charge is framed, the accused is **discharged**. After the charge is framed (or in cases where no charge is required), the accused is **acquitted**.
- *New proviso*: **the victim must be given an opportunity to be heard**. Central Government permission is needed in some cases (e.g. offences under laws relating to the Union's executive power, investigated by the CBI).
- **Principles**:
    - The PP must apply an **independent mind**; they are not a post office of the Government.
    - The court performs a **supervisory function**: it checks whether the application is made in good faith, in the public interest, and not to thwart justice.
    - Grounds include: inadequate evidence, public peace, a broader public interest, or political, social or economic reasons.
    - Cases: *Sheonandan Paswan v. State of Bihar* (1987, Constitution Bench); *Abdul Karim v. State of Karnataka* (2000, the Veerappan case); *Rajender Kumar Jain v. State* (1980); *State of Kerala v. K. Ajith* (2021, Kerala Assembly ruckus case: withdrawal refused).

Q48. Irregular proceedings (ss. 506–512, 520, 525–527)

Principle: procedural irregularities should not defeat justice unless they cause **prejudice or failure of justice**.

- **s.506** (CrPC 460): **irregularities that do not vitiate proceedings**, if done erroneously in good faith by a Magistrate not empowered. Examples: issuing a search warrant, ordering investigation, holding an inquest, issuing process, taking cognizance under s.210(1)(a) or (b), making over a case, tendering pardon, recalling and trying a case.
- **s.507** (CrPC 461): **irregularities that vitiate proceedings**, done by a Magistrate not empowered. Examples: attaching and selling property, issuing a search warrant for a document in postal custody, demanding security for keeping peace or good behaviour, discharging a person lawfully bound, cancelling a bond, making an order for maintenance, making orders under ss.152 or 163, taking cognizance under

s.210(1)(c), trying an offender, trying summarily, passing a sentence, deciding an appeal, calling for proceedings in revision.

- **s.508** (CrPC 462): proceedings in the **wrong place** are not set aside unless there was a failure of justice.
- **s.509** (CrPC 463): non-compliance with s.183 or s.316 (recording of confession or examination of the accused) can be cured by taking evidence that the person duly made the statement.
- **s.510** (CrPC 464): **omission to frame a charge, or an error in the charge**, does not invalidate a finding unless it caused a failure of justice. The appellate court may then direct framing of a charge and a retrial.
- **s.511** (CrPC 465): **no finding or sentence is reversed for error, omission or irregularity** (including in sanction) **unless a failure of justice** has been occasioned. The court considers whether the objection could and should have been raised earlier.
- **s.512** (CrPC 466): defect or error in an attachment does not make the seizure unlawful.
- **s.525** (CrPC 479): a judge or magistrate shall **not try a case to which they are a party or in which they are personally interested**, without permission of the appellate court.
- **s.526** (CrPC 480): a practising pleader shall not sit as a Magistrate in courts in which they practise.
- **s.527** (CrPC 481): a public servant concerned in a sale shall not purchase or bid for the property.
- (s.520 deals with cases transferred / trial before the High Court.)

Q49. Inherent powers of the High Court (s.528, CrPC 482). *(Very important)*

Text: "Nothing in this Sanhita shall be deemed to limit or affect the **inherent powers of the High Court** to make such orders as may be necessary:

i. to give effect to any order under this Sanhita;
ii. to **prevent abuse of the process of any court**; or
iii. otherwise to **secure the ends of justice**."

Nature: these powers are not conferred but **saved**. They are inherent in the High Court as a superior court. They are to be exercised **sparingly, with circumspection and in rare cases**. They cannot be used to override express provisions.

Uses: quashing an FIR, complaint or chargesheet; quashing proceedings on settlement; expunging remarks; correcting clerical errors; granting relief where no other remedy exists.

State of Haryana v. Bhajan Lal (1992). Seven categories where an FIR or proceedings may be quashed:

1. The allegations, even if taken at face value, do not constitute an offence.

2. The allegations do not disclose a cognizable offence justifying investigation without a Magistrate's order.
3. The uncontroverted allegations do not disclose any offence.
4. The allegations constitute only a non-cognizable offence and no Magistrate's order was obtained.
5. The allegations are so absurd and improbable that no prudent person could reach a conclusion.
6. There is an express legal bar to institution of proceedings.
7. The proceedings are **manifestly mala fide** or maliciously instituted with ulterior motive.

Other cases

- *R.P. Kapur v. State of Punjab* (1960): earlier categories.
- *Gian Singh* (2012): quashing on compromise.
- *Neeharika Infrastructure v. State of Maharashtra* (2021): the High Court should not pass blanket "no coercive steps" orders; guidelines.
- *State of Karnataka v. L. Muniswamy* (1977): ends of justice are higher than the ends of mere law.

MODULE 6 — JUDGMENT, PROBATION, APPEALS, REVISION, EXECUTION

Q50. Judgment — mode and contents (ss. 392–406, CrPC 353–365)

- **s.392** (CrPC 353): judgment is pronounced in **open court** immediately after the trial or at a later time with notice. It may be pronounced by delivering the whole judgment, reading it, or reading the operative part and explaining its substance. It is to be **uploaded on the portal within 7 days**. It may be pronounced through audio-video means.
- **s.393** (CrPC 354): **language and contents**: in the language of the court. It contains the **points for determination, the decision and the reasons**. It specifies the offence and section and the punishment. For an acquittal, it states the offence and directs that the accused be set at liberty. **For life imprisonment or a term of years** where death is an alternative, **special reasons** must be given for a death sentence (*Bachan Singh*). If the offence is punishable with 1 year or more but the court imposes **less than 3 months**, it must record reasons.
- s.394: order for notifying the address of a previously convicted offender.
- **s.395** (CrPC 357): **order to pay compensation** to the victim out of the fine, or even when a fine is not part of the sentence (*Hari Singh v. Sukhbir Singh*, 1988, which urged courts to use this liberally; *Ankush Shivaji Gaikwad v. State of Maharashtra*, 2013, which held courts must apply their mind to compensation in every case).
- **s.396** (CrPC 357A): **Victim Compensation Scheme**. Interim relief and free first aid (s.397, CrPC 357C).
- **s.398** *(new)*: **Witness Protection Scheme** to be notified by every State.

- s.399: compensation to persons groundlessly arrested.
- s.400: order to pay costs in non-cognizable cases.
- **s.401** (CrPC 360): **release on probation of good conduct or after admonition** (see Q52).
- s.402: special reasons to be recorded for not granting probation.
- **s.403** (CrPC 362): the **court shall not alter or review** its judgment after signing, except to correct a **clerical or arithmetical error**.
- s.404: copy of judgment to the accused free of cost.
- s.405: translation to be explained.
- s.406: court of Session to send copy of finding to DM.

Q51. Confirmation of death sentence (ss. 407–412, CrPC 366–371)

- **s.407**: when the Court of Session passes a **death sentence**, the proceedings are submitted to the **High Court**. **The sentence shall not be executed unless confirmed by the High Court.** The convicted person is committed to jail custody.
- s.408: the High Court may direct **further inquiry or additional evidence**.
- **s.409**: the High Court may:
  - **confirm** the sentence or pass any other sentence;
  - **annul the conviction** and convict for another offence, or order a new trial on the same or amended charge;
  - **acquit** the accused. No confirmation is made until the appeal period expires or the appeal is disposed of.
- s.410: confirmation or new sentence signed by **two judges** (where the Bench has two or more).
- s.411: procedure in case of difference of opinion. It goes to a third judge.
- s.412: procedure on confirmation. A copy goes to the Sessions Court.
- **Doctrine of "rarest of rare"**:
  - *Bachan Singh v. State of Punjab* (1980): the death penalty is constitutional but to be imposed only in the "rarest of rare" cases, balancing aggravating and mitigating circumstances. **Life imprisonment is the rule and death the exception.**
  - *Machhi Singh v. State of Punjab* (1983): five categories (manner of commission, motive, anti-social nature, magnitude, personality of the victim).
  - *Manoj v. State of M.P.* (2022): mitigation investigation and psychological evaluation are required.

Q52. Probation of offenders and parole

A. Probation: a **non-institutional (community-based) treatment** of an offender. The offender is released conditionally under supervision instead of being sent to prison. It is based on the **reformative theory**. It avoids contamination of first offenders by hardened criminals.

Probation of Offenders Act, 1958

- **s.3**: **release after admonition** for offences under IPC ss.379, 380, 381, 404, 420 or any offence punishable with up to **2 years**, with no previous conviction.
- **s.4**: **release on probation of good conduct** for any offence **not punishable with death or life imprisonment**, having regard to the circumstances, nature of the offence and character of the offender. A bond is required for up to **3 years**, with or without sureties. A **supervision order** may be made. The probation officer's report is considered.
- **s.5**: the court may order **compensation and costs** to the victim.
- **s.6**: an offender **under 21** shall not be sentenced to imprisonment (for offences not punishable with life) unless the court records reasons. The court must call for a probation officer's report.
- s.7: report of the probation officer is confidential.
- s.8: variation of conditions. s.9: procedure on the offender failing to observe conditions. The offender may be sentenced for the original offence.
- **s.11**: appellate and revisional courts may also grant probation.
- **s.12**: **removal of disqualification** attached to conviction (e.g. for government service).
- s.13: **probation officers**. **s.14**: **duties of probation officers**:
    - inquire into the circumstances and home surroundings of the offender;
    - supervise probationers;
    - advise and assist them in finding employment;
    - advise them on compensation;
    - report to the court.
- s.18: saves certain special laws (the Act does not override specific statutes listed there).
- s.19: s.401 BNSS (CrPC 360) **does not apply** where the Probation of Offenders Act is in force.

Role of judiciary

- *Rattan Lal v. State of Punjab* (1965): the Act was applied retrospectively as a beneficial law.
- *Ishar Das v. State of Punjab* (1972): probation applied to a young offender under the Food Adulteration Act.
- *Musa Khan v. State of Maharashtra* (1977).
- *Mohd. Aziz Mohd. Nasir v. State of Maharashtra* (1976).
- *State of Maharashtra v. Jagmohan Singh Kuldip Singh Anand* (2004): probation is not to be granted mechanically.
- *State of M.P. v. Vikram Das* (2019): where a statute prescribes a **mandatory minimum sentence**, courts cannot go below it (so probation is generally not available).

B. Parole: **conditional release of a convict before completion of sentence** (or temporary release for a short period) for good behaviour, family emergencies, or social reasons. It is governed by **State prison rules / executive orders**, not the BNSS. **Furlough** is a release as a matter of right after a certain period served, for good conduct, to maintain family ties.

- *State of Haryana v. Mohinder Singh* (2000);
- *Asfaq v. State of Rajasthan* (2017): difference between parole and furlough;
- *State of Gujarat v. Narayan @ Narayan Sai* (2021).

Probation vs Parole

Probation	Parole
Granted **instead of** imprisonment, at the sentencing stage	Granted **after** serving part of the sentence
Granted by the **court**	Granted by the **executive** (prison authorities / State Government)
Under the Probation of Offenders Act, 1958 / s.401 BNSS	Under prison rules
Offender never goes to prison	Offender is released from prison
Judicial function	Administrative function
Aim: reformation without stigma	Aim: rehabilitation and maintaining social ties

Q53. Appeals (ss. 413–435, CrPC 372–394)

- **s.413** (CrPC 372): **no appeal except as provided** by BNSS or another law. *Proviso*: the **victim has a right to appeal** against an acquittal, a conviction for a lesser offence or inadequate compensation (introduced 2009). *Mallikarjun Kodagali v. State of Karnataka* (2018): the victim does not need leave to appeal.
- s.414 (CrPC 373): appeal from orders requiring security or refusing to accept or rejecting a surety.
- **s.415** (CrPC 374): **appeals from convictions**:
  - from a High Court in extraordinary original criminal jurisdiction, to the Supreme Court;
  - from Sessions trials or trials by a Magistrate with a sentence of more than 7 years, to the High Court;
  - from Magistrates, to the Court of Session.
  - Appeals in **rape cases** are to be disposed of within **6 months**.
- **s.416** (CrPC 375): **no appeal where the accused pleads guilty** and is convicted, except as to extent or legality of sentence.
- **s.417** (CrPC 376): **no appeal in petty cases**:
  - High Court: imprisonment up to 3 months or fine up to ₹1,000, or both;
  - Court of Session: imprisonment up to 3 months or fine up to ₹200, or both;
  - Magistrate: fine only, up to ₹3,000;
  - summary trial: fine only, up to ₹200. An appeal still lies if any other punishment is combined with it. *(Check the exact rupee figures against your bare act.)*
- **s.418** (CrPC 377): **appeal by the State against inadequacy of sentence**, to the High Court (or Sessions in some cases). The accused can plead for acquittal.
- **s.419** (CrPC 378): **appeal against acquittal**:
  - by the DM through the PP, to the Sessions Court, in cognizable and non-bailable Magistrate cases;

    - by the State Government to the High Court **with leave**;
    - by the complainant **with special leave** of the High Court, within **6 months** if the complainant is a public servant, or **60 days** otherwise.
    - Principles: an acquittal reinforces the presumption of innocence; it is interfered with only if perverse (*Chandrappa v. State of Karnataka*, 2007).
- **s.420** (CrPC 379): an appeal against conviction by the High Court in certain cases lies to the Supreme Court (where the High Court reversed an acquittal and sentenced to death, life or 10+ years).
- s.421 (CrPC 380): special right of appeal in certain cases (co-accused).
- ss.422–426: appeal to Sessions; petition of appeal; procedure; summary dismissal.
- **s.427** (CrPC 386): **powers of appellate court**: reverse, alter, order retrial, enhance (only after notice to the accused), and so on.
- **s.430** (CrPC 389): **suspension of sentence pending appeal; release on bail**. The PP must be heard for offences punishable with death, life or 10+ years.
- s.431: arrest of accused in appeal from acquittal. s.432: appellate court may take further evidence.
- s.434: **finality** of appellate judgments. s.435: abatement of appeals on death (except appeals against conviction where sentence of fine).

Q54. Reference and revision (ss. 436–445, CrPC 395–405)

Reference (s.436, CrPC 395): if a subordinate court is satisfied that a case pending before it involves a **question about the validity** of an Act, ordinance or regulation, the determination of which is necessary for the disposal of the case, and it thinks the law is invalid (but it has not been declared so by the High Court or Supreme Court), it **must state the case and refer** it to the High Court. Sessions Courts and Metropolitan Magistrates may also refer other questions of law. s.437: the High Court's order on the reference.

Revision

- **s.438** (CrPC 397): the **High Court or Sessions Judge may call for and examine the record** of any proceeding of an inferior criminal court to satisfy itself as to the **correctness, legality or propriety** of any finding, sentence or order, and the regularity of proceedings. **No revision against interlocutory orders** (s.438(2); *Amar Nath v. State of Haryana*, 1977; *Madhu Limaye v. State of Maharashtra*, 1977, which said intermediate orders are not interlocutory). **Bar on second revision** by the same person (s.438(3)).
- s.439 (CrPC 398): power to order inquiry.
- s.440 (CrPC 399): Sessions Judge's powers of revision.
- s.441 (CrPC 400): Additional Sessions Judge.
- **s.442** (CrPC 401): **High Court's powers of revision**: any power of an appellate court. Limits:
    - no order to the prejudice of the accused without hearing;
    - **cannot convert a finding of acquittal into a conviction** (it can only order a retrial);
    - **no revision at the instance of a party who could have appealed**.

- s.443: power of High Court to withdraw or transfer revision cases.
- s.444: option of the court to hear parties.
- s.445: statement of High Court's order to be certified to the lower court.

Appeal vs Revision

Appeal	Revision
A substantive **right** of the party conferred by statute	A **discretion** of the court
Lies on facts and law	Mainly on legality, propriety and correctness; not a re-appreciation of evidence
Conviction may be reversed	Acquittal cannot be converted into conviction
Limitation period applies	Can be exercised suo motu

Q55. Transfer of criminal cases (ss. 446–452, CrPC 406–412)

- **s.446** (CrPC 406): the **Supreme Court** may transfer a case or appeal from one High Court to another, or from a subordinate court of one State to that of another, **for the ends of justice**. The application is made by the Attorney General or an interested party, by motion supported by affidavit. Compensation up to ₹1,000 may be ordered for a frivolous application.
  - *Zahira Habibullah Sheikh* (2004): the Best Bakery case was transferred from Gujarat to Maharashtra.
  - *Maneka Sanjay Gandhi v. Rani Jethmalani* (1979): grounds for transfer include reasonable apprehension of a fair trial not being possible; the apprehension must be reasonable, not imaginary.
- **s.447** (CrPC 407): **High Court's** power to transfer within the State where:
  - a fair and impartial trial cannot be had;
  - a question of unusual difficulty is likely to arise;
  - it is required under a provision of BNSS;
  - it is expedient for the general convenience of parties or witnesses or for the ends of justice.
- **s.448** (CrPC 408): **Sessions Judge** may transfer within the sessions division.
- s.449: withdrawal of cases and appeals by Sessions Judges.
- s.450: withdrawal by Additional Sessions Judge.
- s.451: Magistrates (CJM) may make over or withdraw cases.
- s.452: reasons to be recorded.

Q56. Execution, suspension, remission and commutation of sentences (ss. 453–477)

- **s.453** (CrPC 413): execution of an order in a death sentence after confirmation. **s.454**: execution of a sentence of death passed by the High Court.
- **s.455** (CrPC 416): **pregnant woman** sentenced to death: the **High Court shall commute** the sentence to **life imprisonment** (BNSS).
- ss.456–459: execution of imprisonment; place of imprisonment; warrant to execute.

- ss.461–464: levy of fine; effect of payment of fine.
- s.465: suspension of execution of sentence of imprisonment.
- s.467 (CrPC 427): a sentence on an offender already sentenced for another offence runs consecutively, unless the court directs concurrent running.
- s.468 (CrPC 428): **set-off** of detention undergone during investigation, inquiry or trial against the term of imprisonment.
- ss.469–471: saving; return of warrant; warrant with which a sentence is to be executed.
- **s.472** *(new)*: **mercy petition in death sentence cases**. The convict files it within **30 days** of being informed of the dismissal of the appeal or SLP, first to the Governor and then to the President within 60 days. No appeal lies against the President's order.
- **s.473** (CrPC 432): **power to suspend or remit sentences**. The appropriate Government may suspend or remit the sentence, with or without conditions, after taking the opinion of the presiding judge. If a condition is not fulfilled, the remission is cancelled and the person can be re-arrested.
- **s.474** (CrPC 433): **power to commute**:
    - death to any other punishment under BNS;
    - life imprisonment to imprisonment not less than **7 years**;
    - imprisonment of 7 years or more to not less than **3 years**;
    - imprisonment of less than 7 years to a fine;
    - rigorous imprisonment to simple imprisonment.
- **s.475** (CrPC 433A): **restriction**. A person sentenced to **life imprisonment for an offence punishable with death**, or whose death sentence was commuted to life, shall not be released **until they have served 14 years**.
- s.476 (CrPC 434): concurrent powers of the Central Government in death sentence cases.
- s.477 (CrPC 435): the State Government must act after **consultation with (concurrence of) the Central Government** in certain cases (CBI-investigated, Central law offences).
- **Constitutional powers** (Arts. 72 and 161) are independent of these.
    - *Union of India v. V. Sriharan* (2016, Constitution Bench): the State cannot remit suo motu; the court can fix a fixed-term life sentence beyond 14 years; "consultation" means concurrence.
    - *Epuru Sudhakar v. Govt. of A.P.* (2006): the pardon power is subject to judicial review on limited grounds.
    - *Shatrughan Chauhan v. UOI* (2014): delay in deciding a mercy petition is a ground for commutation.

Q57. Tender of pardon to accomplice (ss. 343–345, CrPC 306–308)

- **s.343** (CrPC 306): to obtain the evidence of a person supposed to be directly or indirectly concerned in an offence, a **CJM or JMFC** (during investigation, inquiry or trial) may **tender a pardon** on condition that they make a **full and true disclosure** of all circumstances within their knowledge. It applies to offences **triable exclusively by Sessions**, offences punishable with **7 years or more**, or offences

under specified laws. Reasons are recorded. The **approver** is examined as a witness and is **detained in custody till termination of the trial**, unless already on bail.
- **s.344** (CrPC 307): power to direct tender of pardon **after commitment but before judgment** by the court to which the case is committed.
- **s.345** (CrPC 308): **trial of a person not complying** with the conditions. If the PP certifies that the approver wilfully concealed something material or gave false evidence, the approver may be tried for the offence and for giving false evidence (the latter with High Court sanction). Their statement may be used against them.
- *Suresh Chandra Bahri v. State of Bihar* (1995): the approver's evidence needs **corroboration in material particulars** (BSA s.119(b) illustration, s.138).
- *A. Devendran v. State of T.N.* (1997): the Sessions Court cannot tender pardon at the commitment stage; s.306 is for Magistrates before commitment.

Q58. Provisions as to accused persons of unsound mind (ss. 367–378, CrPC 328–339)

- **s.367** (CrPC 328): procedure in case of an accused of unsound mind at an **inquiry**. The Magistrate gets them examined by a psychiatrist or clinical psychologist. If the accused is of unsound mind **and incapable of making a defence**, the inquiry is postponed. If the evidence shows no prima facie case, the accused is discharged.
- **s.368** (CrPC 329): procedure in case of a person of unsound mind **tried before court**.
- **s.369** (CrPC 330): **release pending investigation or trial**. The person is released on security if they can be cared for and prevented from injuring themselves or others. Otherwise they are detained in a residential facility.
- s.370 (CrPC 331): resumption of inquiry or trial when the person ceases to be of unsound mind.
- **s.371** (CrPC 332): procedure on the accused appearing before Magistrate or court.
- **s.372** (CrPC 333): when the accused appears to have been of sound mind at the time of the offence, the trial proceeds.
- **s.373** (CrPC 334): **judgment of acquittal on the ground of unsoundness of mind**. The finding must state whether the accused committed the act (BNS s.22).
- **s.374** (CrPC 335): a person acquitted on this ground is **detained in safe custody** or delivered to a relative.
- ss.375–378: delivery of a lunatic prisoner to the care of a relative or friend, etc.
- *Dahyabhai Chhaganbhai Thakker v. State of Gujarat* (1964): a defence of insanity must be proved on the preponderance of probabilities.
- *Shrikant Anandrao Bhosale v. State of Maharashtra* (2002).

MODULE 7 — JUVENILE JUSTICE (Note: the syllabus heading says 1986 but the content is the JJ (Care and Protection of Children) Act, 2015)

Q59. Concept and historical perspective of juvenile justice; BNS ss. 20 and 21

Concept: children who commit offences are to be treated differently from adults, with the focus on **reformation, rehabilitation and the best interests of the child**, not punishment. It is based on the **doctrine of parens patriae** (the State as guardian).

Historical perspective

- Apprentices Act, 1850.
- Reformatory Schools Act, 1897.
- IPC ss.82–83 (now BNS ss.20–21).
- Children Acts of the various States (Madras 1920, Bengal 1922, Bombay 1924).
- **Children Act, 1960** (for Union Territories).
- *Sheela Barse v. UOI* (1986) led to a uniform law.
- **Juvenile Justice Act, 1986** (the first uniform law): age 16 for boys and 18 for girls.
- **UN Convention on the Rights of the Child (1989)**, ratified by India in 1992.
- **JJ (Care and Protection of Children) Act, 2000**: age 18 for both.
- After the **Nirbhaya case (2012)**: the **JJ Act, 2015**, which allows children of **16–18 years** to be tried as **adults for heinous offences** after a preliminary assessment.
- **2021 amendment**: District Magistrates were empowered (adoption orders, supervision).

BNS provisions

- **s.20** (IPC 82): nothing is an offence that is done by a **child under 7 years**. This is absolute immunity (*doli incapax*).
- **s.21** (IPC 83): nothing is an offence that is done by a child **above 7 and under 12** who has **not attained sufficient maturity of understanding** to judge the nature and consequences of their conduct. This is a **qualified immunity**; maturity must be proved.

International instruments: UNCRC 1989; **Beijing Rules** (UN Standard Minimum Rules for the Administration of Juvenile Justice, 1985); **Riyadh Guidelines** (1990); **Havana Rules** (1990).

Q60. Child in conflict with law vs child in need of care and protection; JJ Boards and Children's Courts

Child in conflict with law (CCL) (s.2(13)): a child **alleged or found to have committed an offence** who has not completed **18 years** on the date of the offence.

Child in need of care and protection (CNCP) (s.2(14)): a child who:

- has no home or settled place and no ostensible means of subsistence;
- works in contravention of labour laws or is found begging or living on the street;
- resides with a person who has injured, exploited, abused or neglected them, or has threatened to do so;

- is mentally ill, mentally or physically challenged, or suffers from a terminal or incurable disease with no one to support them;
- has a parent or guardian who is unfit or incapacitated;
- has no parent and no one willing to take care of them, or whose parents have abandoned or surrendered them;
- is missing or a runaway;
- has been or is being, or is likely to be, abused, tortured or exploited for sexual abuse or illegal acts;
- is vulnerable and likely to be inducted into drug abuse or trafficking;
- is being or is likely to be abused for unconscionable gains;
- is a victim of an armed conflict, civil unrest or natural calamity;
- is at imminent risk of marriage before attaining the age of marriage.

CCL	CNCP
Has allegedly committed an offence	Is a victim of circumstances or neglect
Dealt with by the **Juvenile Justice Board**	Dealt with by the **Child Welfare Committee**
Placed in observation or special homes	Placed in children's homes or with fit persons
Approach: reformation	Approach: care, protection, rehabilitation

Juvenile Justice Board (ss. 4–9)

- **Composition**: a **Metropolitan Magistrate or JMFC** (Principal Magistrate) with at least 3 years' experience, and **two social workers**, at least one a woman.
- **Functions**: to ensure informed participation of the child; to inquire into CCL cases; to direct the DCPU or probation officer to prepare a **social investigation report**; to adjudicate; to inspect residential facilities.

Procedure

- No child is placed in police lock-up or jail (s.10). The child is produced before the Board within 24 hours.
- **Bail is the norm** (s.12): a child is released with or without surety unless release would bring them into association with known criminals, expose them to moral, physical or psychological danger, or defeat the ends of justice.
- Inquiry is to be completed within **4 months**, extendable by 2 months (s.14).
- **Heinous offences by a child of 16–18 (s.15)**: the Board conducts a **preliminary assessment** within **3 months** of the child's ability to commit the offence, understanding of consequences, and circumstances. It may then transfer the case to the **Children's Court** (Sessions Court) for trial as an adult (s.18(3)).
- **Orders (s.18)**: admonition; group counselling; community service; fine; probation; placement in a **special home** for up to **3 years**.
- **No death or life imprisonment without the possibility of release** (s.21).
- No disqualification attaches to a conviction (s.24).
- **Categories of offences**: **petty** (up to 3 years), **serious** (3–7 years), **heinous** (minimum 7 years or more).

- *Shilpa Mittal v. State (NCT of Delhi)* (2020): an offence with a **maximum of more than 7 years but no minimum** (or a minimum of less than 7 years) is a "serious" offence, not a "heinous" one.

Cases

- *Pratap Singh v. State of Jharkhand* (2005): the relevant age is the date of the offence.
- *Salil Bali v. UOI* (2013): upheld 18 as the age of juvenility.
- *Subramanian Swamy v. Raju* (2014): the court refused to read down the JJ Act based on the mental maturity of the offender.
- *Jitendra Singh v. State of U.P.* (2013): a claim of juvenility can be raised at any stage, even after final disposal.

Q61. Children in need of care and protection — Child Welfare Committee, SJPU, Childline

Child Welfare Committee (CWC) (ss. 27–30)

- **Composition**: a **Chairperson and four members**, at least one a woman and one an expert on matters concerning children. Constituted by the State Government for each district.
- **Powers**: it has the powers of a **Metropolitan Magistrate / JMFC**. Its decisions are final for CNCP cases.
- **Functions (s.30)**:
    - take cognizance of and receive children produced before it;
    - inquire into all issues relating to the safety and well-being of children;
    - direct social workers or probation officers to conduct social investigations;
    - declare a child fit for adoption (legally free for adoption);
    - restore children to families;
    - select registered institutions for placement;
    - conduct regular inspections of homes;
    - certify the execution of the surrender deed by parents;
    - ensure the care, protection, treatment, development and rehabilitation of children.
- A child is produced before the CWC within **24 hours** (s.31) by a police officer, public servant, Childline, NGO, social worker, nurse, doctor, or the child themselves.
- The inquiry is to be completed within **4 months** (s.36).

Rehabilitation and social reintegration (ss. 39–46): through **family-based care**, i.e. **adoption, foster care (s.44), sponsorship (s.45)**, and **after-care** (s.46, for children leaving institutions at 18, with support until 21).

Special Juvenile Police Unit (SJPU) (s.107)

- Every police station has at least one **Child Welfare Police Officer** (ASI or above).
- The SJPU in every district is headed by a DSP-level officer, with two social workers.

- It coordinates all police functions relating to children and handles cases with sensitivity (plain clothes, no handcuffs).

Childline services: 24×7 emergency outreach helpline (**1098**) for children in distress. It is now integrated with the Emergency Response Support System (112) under Mission Vatsalya. It rescues children and produces them before the CWC.

Q62. Institutional mechanisms and rehabilitation

- **Observation Homes (s.47)**: **temporary reception** of a CCL during the pendency of an inquiry.
- **Special Homes (s.48)**: for **rehabilitation of a CCL found to have committed an offence** and placed there by order of the JJB.
- **Place of Safety (s.49)**: for persons **above 18 or children of 16–18** accused or convicted of a **heinous offence**. At least one is set up in each State.
- **Children's Homes (s.50)**: for **CNCP** for care, treatment, education, training and rehabilitation. There are special homes for children with special needs.
- **Open Shelters (s.43)**: for children in need of residential support on a short-term basis.
- **Fit Facility (s.51)**: a facility run by a Government organisation or registered NGO, recognised by the Board or CWC as fit to take temporary responsibility of a child.
- **Fit Person (s.52)**: a person recognised as fit to take temporary care of a child.
- **Specialised Adoption Agencies (s.65)**.
- **Standards of care**: registration of all child care institutions is mandatory (s.41). This covers the standards of food, clothing, education, health, vocational training and recreation in the rules. **Inspection committees** inspect the institutions (s.54). There is a **social audit** (s.55), and the **NCPCR / SCPCR** monitor implementation of the Act (s.109).
- *Sampurna Behrua v. UOI* (2018): implementation of the JJ Act and the need for proper infrastructure.
- *Re: Exploitation of Children in Orphanages in the State of T.N. v. UOI* (2017).

Q63. Adoption under the JJ Act; CARA; inter-country adoption

Legal framework (Chapter VIII, ss. 56–73)

- **s.56**: adoption is for **orphan, abandoned and surrendered children**. It is also possible for a relative's child and for a step-parent adoption. It is done according to the **Adoption Regulations, 2022** framed by CARA. It applies to all religions (a **secular** law), unlike HAMA 1956, which applies only to Hindus. *Shabnam Hashmi v. UOI* (2014): any person, irrespective of religion, can adopt under the JJ Act.
- **s.38**: procedure for declaring a child **legally free for adoption** by the CWC. This takes **2 months** for children under 2 years and **4 months** for those above. A surrendering parent gets **60 days to reconsider** (s.35).
- **s.57 Eligibility of prospective adoptive parents**:
    - physically fit, financially sound, mentally alert, and highly motivated;

    - a couple needs consent of both spouses and must have a **stable marital relationship of at least 2 years**;
    - a **single female** can adopt a child of any gender;
    - a **single male cannot adopt a girl child**;
    - minimum age difference of **25 years** between the child and either parent.
- **s.58**: procedure for in-country adoption by Indian prospective adoptive parents.
- **s.61**: the **District Magistrate issues the adoption order** (since the 2021 amendment; earlier it was the court). The order must be passed within **2 months**.
- **s.63**: **effect of adoption**: the child becomes the child of the adoptive parents for all purposes, **including inheritance**. All ties with the birth family are severed.
- **s.80**: punishment for adoption without following the procedure (up to 3 years or a fine of ₹1 lakh).

Central Adoption Resource Authority (CARA) (s.68)

- A **statutory body** under the Ministry of Women and Child Development.
- It is the **Central Authority under the Hague Convention on Inter-country Adoption, 1993**.
- **Functions**:
    - promote in-country adoptions;
    - regulate and facilitate **inter-country adoptions**;
    - **frame regulations** on adoption;
    - carry out the functions of the Central Authority under the Hague Convention;
    - monitor State Adoption Resource Agencies (SARAs) and Specialised Adoption Agencies (SAAs);
    - maintain **CARINGS** (the online database of children and prospective parents);
    - issue the **No Objection Certificate (NOC)** for inter-country adoptions.

Inter-country adoption (s.59)

- If a child cannot be placed with Indian or NRI parents within **60 days** of being declared legally free, they may be given for inter-country adoption.
- **Preference order**: NRIs, then OCIs, then foreign nationals.
- Applications are routed through an **Authorised Foreign Adoption Agency (AFAA)** or the Central Authority / government department of the receiving country, and the **home study report** is prepared there.
- **CARA issues the NOC**. The DM passes the adoption order. Post-adoption follow-up continues for **2 years**.
- Relatives abroad may also adopt.

Safeguards

- *Lakshmi Kant Pandey v. UOI* (1984): the landmark guidelines.
    - Preference is given to Indian parents.
    - Recognised agencies only.
    - A home study report is required.
    - There must be a court scrutiny (now done by the DM).
    - Follow-up reports are needed.

    - There must be no trafficking or commercial element.
- These protections prevent **child trafficking** and ensure the **best interests of the child**.

Key exam tip: for every long answer, write in this order:

1. Introduction (meaning)
2. The relevant section (BNSS number, with the CrPC number in brackets)
3. Ingredients, procedure or points
4. **At least 2–3 cases**
5. Recent change under BNSS
6. Conclusion (link to Art. 21 / fair trial)